

PICKETT'S GAP

HOMER GREENE

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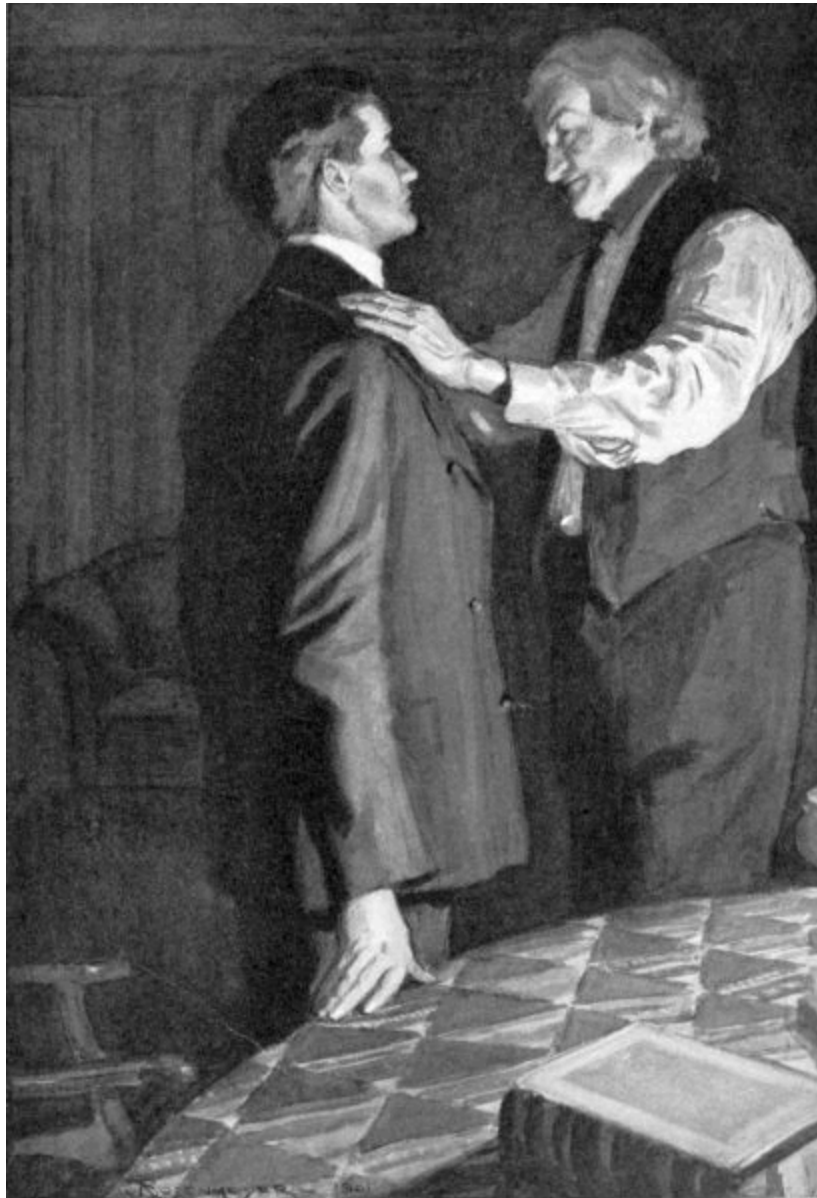
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[“I have been to blame.”](#)

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BY
HOMER GREENE

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PICKETT'S GAP

CHAPTER I

Abner Pickett stood in the dusty roadway, rake in hand, watching a load of late August clover, that day harvested, move slowly toward the barn. It was a rich, fragrant, well-proportioned load, covering the hay-rigging wholly from sight, hiding the horses that drew it, swallowing in its luxurious depths the man who drove the team. It was Abner Pickett's hay, and his team, and his barn; so indeed were his all the fertile acres that surrounded him. But for all this Abner Pickett was not happy.

The yellow glow of the late afternoon sun rested on his bronzed face, but it left there no look of joy, nor even of content. He was a picturesque figure as he stood facing the luminous west. His long white hair, combed straight back from his forehead, curled gracefully on his broad shoulders. His complexion was as clear, his cheeks as pink-tinted, his blue eyes as bright and piercing, as though he had been seventeen instead of sixty-five. His woollen shirt, open winter and summer at the throat, disclosed a muscular neck like a bronze column rising from his chest, and revealed nowhere the wrinkles and the hollows which betoken weight of years. His manners and his moods were no less eccentric than his looks. There were few people in that region who had not, at one time or another, felt the shock of his blunt speech or the keen edge of his caustic tongue. Yet here and there some one, usually some poor and friendless one, would be found brave enough to face an incredulous community and testify to Abner Pickett's kindness of heart. But he had the Pickett pride. His father had it before him,—brought it with him, indeed, when he came from New England into Pennsylvania and purchased from the commonwealth the four hundred acre tract on which he built the Pickett homestead. Abner Pickett inherited the place from his father. Not a square foot of the four hundred acres had ever been sold. It was his pride and his passion to keep it intact. He intended to pass it down that way to his only son Charlie. Not that he had any exalted idea of Charlie's ability as a farmer. Indeed, it was well known that Charlie did not take kindly to farming. He was much more fond of knocking around the country with the compass and surveyor's kit that he had managed to get

together, running land lines, locating corners, and laying out village plots for the people of that section of the country. And whether or not Abner Pickett was liked by the neighbors, it is very certain that his son Charlie was the most popular young man in that end of Meredith County. No one was surprised when he married the belle of Port Lenox, the nearest up-river town, and brought her to his father's house. They all said that a young man of his parts could have married any one he chose. But every one was surprised when it became generally known that the young bride had found her way into Abner Pickett's well-guarded heart. People had been shaking their heads ominously for a month, and predicted all sorts of trouble and unhappiness for Charlie Pickett's wife in his father's household. They knew the old man's eccentricities so well. Small wonder, then, that they were astonished when they awoke to the fact that Abner Pickett had become the devoted slave of his daughter-in-law. Nothing was too good for her. No service on his part was too burdensome or too painstaking if it added in the least to her comfort or pleasure. Brusque and biting to the world about him, he was to her as gentle and as helpful and as courteous as a knight of old. During her long illness after Dannie, his only grandchild, was born, his devotion to her never ceased. And when he saw the roses begin to come back into her cheeks, he could no more restrain his delight than he could refrain from drawing his breath. But one night she grew suddenly ill again. And while Charlie and Aunt Martha did for her all that loving thought could suggest, or tender care accomplish, Abner Pickett flung himself on his brown mare and dashed madly off through the darkness to Port Lenox, ten miles away, to fetch the doctor. He had the doctor there by daylight; but no physician, nor any drug, nor the most loving care, could hold the struggling spirit in the frail body, and two days later Charlie's wife was dead.

People who knew said that Abner Pickett felt the blow as keenly as when his own wife died twenty years before. He would not listen to the suggestion that her body should be taken back to her old home at Port Lenox for interment; and, rather than face his wrath, her parents consented that the burial should be made in the Pickett family graveyard at the mouth of the gap. Their action was fully justified.

That graveyard was the pride of Abner Pickett's heart. It lay in a direct line with the opening into the gap, and barely two hundred feet distant. On the north, it was bordered by the public road, on the south, it was washed by

the rippling waters of the brook, and on every side, save the west, the hills rose precipitously as if to guard it. It was a beautiful half-acre. The sward was always fresh and green, and flowers bloomed there from May to October. Abner Pickett's parents were buried there, and his wife, and his brother and sister, and his own children who had died in infancy, as well as others more distantly related to him. And the sheltering soil also hid the bodies of some without home or friends; bodies that, had it not been for Abner Pickett's generosity, would have found interment in the potter's field.

When Charlie's wife was buried there, the old man's interest in his graveyard increased tenfold. He bought the most beautiful monument that the marble-cutters of Port Lenox could furnish, and had it placed at the head of her grave. It was a fluted column, with pedestal and cap, draped with chiselled flowers. Looked at from the west, it stood out, tall and graceful, outlined in perfect proportion against the dark shadows of the gap or the rich verdure of the hills that stood like sentinels about it. That Abner Pickett's graveyard was dear to him, and that the memory of Charlie's wife was one of the tenderest spots in his heart, no one who knew the old man ever had reason to doubt.

But alas for Charlie! The life on the old homestead, which had been irksome enough at its best, grew suddenly unbearable. The ancient farmhouse, lit up temporarily by the brightness and sweetness of the young life so quickly and pathetically ended, grew tenfold more dark and forbidding than ever. It contained one jewel, indeed, his baby, Dannie; but the child was not yet old enough to cheer the father's heart with companionable ways, and the days dragged by in ever increasing loneliness and sorrow. The tasks of the farm, against the performance of which he had always rebelled, became burdensome now beyond endurance, and, on every possible pretext, he found his way, with compass and chain, outside the borders of his father's four hundred acres to do work of which he grew more and more fond as his knowledge and experience increased.

But all this was like gall and wormwood to his father. If Abner Pickett had set his heart on anything, it was that Charlie should follow in his footsteps as manager and eventually owner of one of the largest and best farms in Meredith County, in which, like his father, he should take a just and pardonable pride. That Charlie did not develop a fondness for the farmer's life was a sore trial to the old man, but he hoped that, with

advancing years and larger wisdom, the boy, grown to manhood, would yet take kindly to the toil and triumphs of the farm. And when Charlie settled down in the old homestead, with his sweet young wife to cheer and encourage him, and went out to the tasks of tillage with a hope and vigor almost akin to zest for the work, the old man felt that the fulness of the time for which he had long hoped and waited was at last come.

But his satisfaction was short-lived. With the death of Charlie's wife it vanished. And when the boy again took up his more congenial occupation, and wandered off day after day with compass and chain, leaving the farm to be cared for and worked by others, the old man's cup of sorrow and bitterness was indeed full. Between him and his son there had been no open rupture, but day by day their relations with each other became more strained, and each felt in the air the breath of impending disaster.

It was early spring when Charlie's wife died; it was late August now. The summer, rich in warmth and showers, yielding an abundance from field and garden, vine and tree, had brought to Abner Pickett only sorrow, disappointment, and bitterness. All these were depicted in his rugged face as he stood in the waning sunlight and watched the creaking, jolting wagon with its fragrant load move slowly to the barn.

Up the road from the direction of the gap came Charlie, his compass on his arm, his tripod on his shoulder, and his two-rod chain swinging loosely from his free hand. He was a stalwart young fellow, blue-eyed and fair-haired, tall and muscular, bronzed with the sun and wind, vigorous with the springing life of early manhood.

When Abner Pickett heard footsteps behind him he turned and faced his son.

"Well, father, I'm back."

Charlie had been in Jackson County for three days tracing warrantee lines.

"Yes, I see," replied the old man, the expression of his face absolutely unchanged.

"Is Dannie well?"

"So far as I know."

Charlie started on, but before he had gone a dozen yards, he turned and came back to his father.

“Father,” he said, “let’s end it.”

“End what?”

“This awkwardness, this uncertainty, this everlasting disagreement about the farm. I can’t do farm work, father, I’m not fitted for it—I hate it.”

Charlie should have been less impulsive, more considerate. To declare farm work hateful was, in the mind of Abner Pickett, rank treason. But Charlie was too much like his father to gloss things over. He said what he felt, whether wise or unwise.

Abner Pickett changed his rake from one hand to the other, and still looked at the bulky load of hay making its slow way to the dark and gaping entrance to the barn.

“Yes,” he said slowly and coldly; “that’s been apparent for some time. There’s dogs that’ll bite the hand that feeds ’em.”

Charlie’s face flushed.

“Don’t be unjust, father. I appreciate all you’ve done for me. But I simply can’t stand it on the farm—and I won’t.”

The old man was still impassive.

“No? Well, you’re of age. Your time’s your own. There is no law to compel you to work, exceptin’ the law of self-preservation. If you choose to go gallivantin’ round the country like old Hiram Posten, with a needle an’ a Jacob’s staff, runnin’ out people’s back yards for ’em, it ain’t nobody’s business but your own. But men that stay on my farm must work on my farm.”

Charlie stood for a moment gazing at his father intently.

“Does that mean,” he said at last, “that I must give up my surveying or leave my home?”

The old man turned on his questioner suddenly, aroused at last from his seeming impassiveness.

“Look here, young man,” he said, “I’ve got the best four hundred acres o’ land in Meredith County. After I’m through with it it’s yours if you want it. But you can’t get it by runnin’ land lines in Jackson County all summer, an’ huntin’ muskrats in Beaver all winter. If you want my farm, you’ve got to earn it, an’ the only way you can earn it is to stay home an’ work it like your father an’ your gran’father did before you. Now, that’s the last word. Take it or leave it as you choose.”

Charlie took no time for thought, no time to counsel with himself. As quickly and decisively as though he had been putting aside a toy he replied:

“Very well, father; I leave it.”

For one moment Abner Pickett stood aghast. That any one, least of all his own son, whose ancestral pride should have made such a thing impossible, could throw away so coolly, so carelessly, a gift like this, the condition of obtaining which should have been a joy to him instead of a burden—it was simply and wholly incomprehensible. Without a word he turned on his heel and started up the road toward the barn.

“Father!” called Charlie after him, “does this mean that I must leave my home?”

The old man swung around and faced him almost savagely.

“*Your* home!” he cried, “*your* home! Since when have you possessed it? Didn’t I get it from my father as a reward of faithfulness? Hasn’t my work an’ my money made it the best place in Meredith County? Didn’t I bring you up in it? Didn’t my money feed and clothe you? Didn’t my money educate you an’ spoil you in the best school in this end o’ the state? Didn’t I cater to your whims an’ follies an’ laziness for years at my own expense? An’ when you saw fit to get married, and hadn’t a cent o’ your own to support a wife on, an’ wasn’t likely to get it by your own exertions, didn’t I keep you both under my own roof an’ save you from starvation? An’ what have you ever done to pay for it? An’ now you call it *your* home; an’ next you’ll be orderin’ me to vacate. I want you to understand that this home, an’ this house, an’ this farm, an’ everything there is here is mine. Do you hear? It’s mine, mine, mine!”

When Abner Pickett was angry, the blood mounted slowly to his neck, then to his chin and face, and finally suffused his forehead with its glow. He was angry now; more angry than Charlie had ever seen him before save once; and that was when a man from Port Lenox offered him a hundred dollars for a corner of his graveyard on which to erect a cider mill.

And Charlie was angry in his turn. Up to this moment he had been impatient and impulsive; now, stung by unjust reproaches, the hot blood of passion went surging through his veins.

“You say what is not true!” he cried. “Since I was eighteen I have earned enough and more than enough to support myself and those dependent on me. And in all that time I have received from you only discouragement and ridicule, and abuse and cruelty. I could stand it. I had learned through years of suffering to stand it. But when, in the presence of my wife, you kept it up, she could not fathom you; it made her heartsick and homesick and sorrowful, and in the end it killed her! I say she could have conquered disease, but her sympathy for me and her fear of you, that killed her! Now I, too, have said my last word. To-morrow I shall go. When you can treat me justly I will come again, and not till then.”

He turned on his heel, strode down the road, past the graveyard, lifting his hat reverently as he went by, and then was lost in the deepening shadows of the glen.

Abner Pickett started homeward in a daze. His son’s terrible charge against him came upon him like a stroke of lightning, and left him blinded and bewildered.

“I killed her?” he murmured to himself. “I killed her? I that loved her so; that would ‘a’ cut off my right hand for her any day? What does he mean? What Satan’s falsehood is it he has given me?”

In the gray of the next morning Charlie Pickett came up the path to his old home. The door was unlocked. He opened it and entered. In the sitting-room, with his head resting on his hand, his face gray in the early morning light, he found his father. He crossed the room and stood before him.

“Father,” he said, “I lied to you yesterday. I was unjust and unfilial. I have no excuse to make except that I was moved by uncontrollable anger. I do not know that you ever said a word in the presence of my wife that could

in any way hurt her feelings. I do not know that you ever caused her a single pain, a single regret, a single sorrow. I do know that you were more than kind to her, that you did for her everything that loving thought or willing hands could do, and that your grief at her death was scarcely less than my own. I owe you this apology. I make it now. For this offence I ask your forgiveness. May I have it?"

The old man looked up at him impassively.

"No."

"But, father, it is the only lie I ever told you, and I am sorry for it from the bottom of my heart."

"One lie is enough."

"But I am going now. I may never see you again. It is terrible for father and son to be thus estranged. What can I do to redeem myself in your eyes?"

"Nothing."

"May I come sometime to see you?"

"No."

Charlie turned toward the door, then, a thought striking him suddenly, he turned back again.

"And Dannie, father?"

"Leave him with Martha."

"Thank you! Good-by!"

The old man did not again respond. He still sat with his forehead in his hands, motionless, passionless, like granite. Charlie left the room, closing the door behind him, and went upstairs. In the hall he met Aunt Martha.

"It's all over, Auntie," he said. "I'm going."

The good woman had been weeping.

"I knew you had had it out with each other, Charlie."

"Yes, I'm not to return. I'm going to kiss Dannie good-by. Father says I shall leave him with you. Will you take him, Auntie?"

“Alice gave him to me to take care of when she died, and I’ll keep him till you want him, Charlie. But you’ll soon be coming back?”

“I’m afraid not, Auntie. I can’t tell you about it. You know father. I was thoughtless and cruel. He is firm and unforgiving. But you’ll know where I am. When you want me send for me, and I’ll come.”

He passed on into Dannie’s room. The child was still sleeping. He bent down and kissed the flushed cheek and the dimpled hand. A smile crept over the little face, and the baby stirred in his sleep. Then he went into his own room and threw together a few things to supply his immediate wants. When he went downstairs again, Aunt Martha was standing in the front door. She threw her arms around his neck and kissed him good-by. She had known all his hopes, his ambitions, his sorrows, his faults. She did not side with him against his father, but she felt for him from the bottom of her heart.

At the gateway he turned and threw back to her a kiss. She stood in the front door and saw his stalwart figure stride down the road through the morning mist, and lose itself in the shadows of the gap.

The summer passed, and autumn brought tinted glory to Pickett’s Gap, and then winter came and covered the landscape with her snows; but Charlie Pickett did not come back. Years went by, and still he did not return, and finally his very name grew to be but a memory among those who had known him in his boyhood and his youth.

CHAPTER II

“G ood-by, Gran’pap!”

“Good-by, Dannie! Get to school in time; and don’t forget to look after the sheep.”

“All right, Gran’pap! Don’t forget about the new suspenders.”

“No, indeed I won’t!”

“Good-by!”

Abner Pickett drove away, and Dannie sat on the gate-post and watched him until a turn in the road, as it wound through the narrow cañon of Pickett’s Gap, shut him from sight.

He was still a picturesque figure, this old man, as he faced the climbing sun and started on the ten-mile journey to town. Approaching fourscore years, he had lost little of his physical energy, and none of his mental vigor. He was still brusque and biting, exact to a hair’s-breadth, honest to the heart. He never spoke to any one of Charlie. The whole countryside knew that he had driven his son from his home; but, save Charlie and himself, no one ever knew the reason why. Abner Pickett would not talk about it, and Charlie did not come back.

Not that the old man did not care. No one believed that. No one could believe it who saw him every day. Aunt Martha, than whom no one knew him better, detected the bitterness and the sorrow of the estrangement in his keen eyes, and heard it in the tone of his voice time and again, as he went about his accustomed tasks. But she knew that in the stubbornness of his nature he would suffer death before he would make the first sign, or accept the first proffer of reconciliation. His pride had been too deeply cut to be healed with the salve of apology.

But then, there was Dannie. What Charlie had lost of his father’s strange affection, Dannie had won. And the fondness which the old man had felt and shown for Dannie’s mother had been transferred to her boy. But he was

worthy of it. He was bright and affectionate, a typical farmer's boy, the chum and crony of his grandfather. Many a day they spent together in the woods and fields, many a toothsome lunch they ate in common. Many a trip they took to hunt small game, or whip the brooks for speckled trout. Indeed, if you saw Abner Pickett anywhere within the borders of his four hundred acre tract, you might be pretty well assured that Dannie was not far away.

When the boy was old enough to go to school, it came hard for both of them to be separated all day long; and no one but gran'pap knew what a welcome sight it was to see the sturdy little figure come tramping home along the dusty road from the red schoolhouse two miles away.

So it was with a distinct feeling of loneliness in the heart of each that the old man drove away to town that bright September morning, and Dannie, sitting on the gate-post, saw him go.

For a long time the boy sat there after the last faint echo from the wheels of the rattling buckboard died away, looking off toward the graveyard with its fluted column, and on to the dim recesses of the gap. He was wondering. He was wishing. It was all about his father, whom he never remembered to have seen, to whom he had never spoken in his life, and yet who, so far as he could learn, was living somewhere in estrangement from his home. Why was it? When was it? Whose fault was it? He had asked himself these questions a thousand times. He had tried to learn from others. It was in vain. He had mentioned his father's name once to gran'pap. He never dared to do so the second time. He was fond of his grandfather, very fond of him indeed. The loveliness of his dead mother was a tradition, not only at the Pickett hearthstone, but in all the countryside. And yet, what this boy wanted, what he longed for with his whole boy's heart, with all the ardor of his soul, was, not so much a loving grandfather, not so much a dear mother's tenderness, as it was the living, breathing presence and daily companionship of a strong and stalwart father.

Ah, well! He dropped from his seat on the gate-post, and strolled up the path to the farmhouse, whistling softly. Max, the dog, came bounding out to greet him, and, together, they went out to the sheep pasture to see that the sheep were not straying beyond bounds and tearing their wool with the brambles. After that, Aunt Martha, the housekeeper, gave him his dinner in a pail, kissed him good-by as she always did, and he started off to school.

He had to drive Max back. The dog was devoted to him and always wanted to go with him.

At the first bend in the road he turned to look back, and saw Max still standing by the gate, looking wistfully after his young master. Somehow or other, although Dannie was fond of his books, the day at school dragged dreadfully, and it was with a long sigh of relief that he found himself, in the afternoon, trudging down the dusty road toward home. Max, waiting for him at the gate, leaped joyfully out to meet him. He went to the house to see Aunt Martha, and then again, in compliance with gran'pap's request, and accompanied by the dog, he sauntered up to the pasture to look after the sheep. That duty performed, he went down to the flat and along the road to the potato field where Gabriel, the steady hired man, was digging potatoes. His name was not Gabriel, as Dannie often explained; but every one got to calling him that on account of his horn. He had a big tin horn, once bright with red paint and gilt bands, which he used for the purpose of driving the cows, the sheep, the poultry, and any other live-stock of which he might be in charge, affecting to believe that the animals responded more readily to his signals on the horn than they would have done to the sound of his voice. He was turning out beautiful, big, red potatoes; the Giant Rose he called them, with now and then a few old-fashioned white pink-eyes in the hills.

"Great crop!" he exclaimed as Dannie came up. "Biggest crop sence the year your pa went away."

"What did my father go away for?" asked Dannie, so quickly that Gabriel, startled by the suddenness of the question, inadvertently struck the blade of his hoe into a great plump potato and split it from end to end.

"Oh, now, that's too bad!" he exclaimed, as he stooped to pick up the severed parts, moist and milk-white on the broad cut surfaces. "That's the fust potater I've cut this season, or even nicked," he continued, gazing ruefully at the vegetable wreck in his hand.

"What did my father go away for?" repeated Dannie.

The question certainly was direct enough to demand an answer. Gabriel leaned on his hoe-handle thoughtfully, and took the matter into due consideration before replying.

“Well now, I’ve hearn one story about it one day, an’ another story about it another day. Defferent people hez defferent idees. Ez fer me, I ain’t prepared to make no affidavy about it one way ner another. ‘Don’t tell what you don’t know jes’ because it’s easy,’ ez ol’ Isra’l Pidgin use to say.”

“What do folks say he went away for?” persisted Dannie.

“Well, that’s another question. Some says one thing an’ some says another. Likely as not they ain’t nobody knows jest the right of it.”

“Did he an’ Gran’pap quarrel?”

Gabriel pushed the loose dirt from the top of the next hill of potatoes before he answered.

“Well, ef they did quarrel—now mind ye, I ain’t a-sayin’ wuther they did or wuther they didn’t—but ef they *did* quarrel, it was a quarrel wuth lis’nin’ to, I can tell ye that. I knowed yer pa; knowed ’im like a book; worked right alongside of ’im many a day. Best-natered, best-hearted, best-mannered young feller I ever see in all *my* life. But”—impressively—“he wouldn’t never let no one set on ’im. W’en he sot out to do a thing he done it wuther or no. An’ w’en he got ’is dander up—well, my gracious! You seen he was a chip o’ the ol’ block then, sure. An’ yer gran’pap! Well, you know yer gran’pap perty nigh as well as I do, an’ you know ’at w’at he ain’t capable uv in the way o’ well-digested contrariness ain’t wuth mentionin’. ’Member the dressin’ down he give ’Squire Biddlecomb las’ spring over that breechy cow o’ his’n?”

Gabriel stopped for a moment to chuckle in delighted remembrance over the incident to which he had referred. Then he continued:—

“So, ez I say, ef they did quarrel, it must ’a’ be’n a rip-staver. An’, ez ol’ Isra’l Pidgin use to say, ‘It takes longer fer a win’fall to grow up with new timber ’an it does to heal up a family quarrel.’”

Gabriel never tired of quoting Israel Pidgin; but, when asked about this oracle, the facts he was able to give were very meagre. “An ol’ feller I use to know up in York state” was usually all the information that could be obtained. There were those, however, who did not hesitate to declare that the supposed sage was wholly a creature of Gabriel’s imagination.

“Heard anything about the new railroad?” he asked, changing the subject abruptly, and digging violently into the bottom and sides of a hill from which he had already thrown out all the potatoes. “Say they’re a-comin’ right down acrost the farm an’ out through the gap to the river.”

Dannie knew that it was useless to question Gabriel further about his father, and he turned away disappointed and vexed.

“No,” he replied impatiently, “I don’t know anything about the new railroad, an’ I don’t know as I care.”

“Well,” continued Gabriel, leaning contemplatively on the handle of his hoe, “ef Abner Pickett gits what it’s wuth to a railroad to run through that gap, he can afford to wear a starched shirt onct in a w’ile on a Sunday.”

“Gran’pap wears the kind o’ shirts that suits him,” replied Dannie, indignantly, “an’ it’s nobody’s business but his own.”

“Of course! Of course!” chuckled Gabriel. “As ol’ Isra’l Pidgin use to say, ‘Blood’s thicker’n water; an’ ye can’t thin it by stirrin’ of it up.’”

Dannie was tired and disheartened. He looked away toward the gap and wished, with all his heart, that he might see Gran’pap coming up the road toward home. Some one, indeed, was coming from out the shadows of the rocks, but it was not Gran’pap. It was a small, black-whiskered man, carrying an engineer’s transit. When he was well out from the mouth of the gap he set up his instrument and adjusted it, and peered through the telescope, first back into the shadows of the cañon, and then ahead toward the graveyard, into the sacred enclosure of which the flagman, with his signal pole, was already advancing.

“Look, Gabriel!” exclaimed Dannie, “look! What are they doing?”

Gabriel gave a quick glance toward the gap.

“It’s the new railroad,” he said. “Sure as eternity, it’s the new railroad!”

The chainmen were now in sight, measuring off the distances. The flagman, standing in the very centre of the graveyard and looking back to the transitman, was holding his pole on the ground and balancing it with his hands to keep it plumb.

Gabriel had dropped his hoe, Dannie had thrust his hands savagely into his trousers pockets, and both stood gazing with wide eyes on the animated scene.

“W’at under the canopy Abner Pickett’ll say to that is more’n I’d like to wager on!” exclaimed Gabriel. “Think of it, Dan! A railroad right up through yer gran’pap’s gap; right up through yer gran’pap’s road an’ crick; right up through—bust my bellus ef ’tain’t a comin’ right up through yer gran’pap’s graveyard!”

Dannie set his teeth tight and jammed his fists deeper into his trousers pockets as he saw an engineer’s assistant drive a stake on the graveyard eminence halfway between the fluted column and the roadside wall. He had learned to hold the burial plot in scarcely less reverence than did the old man himself; and to see it trespassed on in this fashion roused all his ire. But the trespass was so audacious that, looking on it as he did, he could neither move nor speak.

The engineers were evidently in some haste. They were setting their line of stakes along the narrow strip of land between the creek and the public road. Already the leveller and the rodman were in sight, following up the location, and the transitman had advanced along the road to a point opposite the potato field where the valley widened and the land began to slope more gently to the north and west. He leaped the fence lightly and came to within twenty feet of where Dannie and Gabriel were standing.

“Hello!” said Gabriel.

“Hello!” replied the stranger.

“Runnin’ a railroad?”

“Yes. Do you own the place?”

“No; but I work fer the man ’at does, an’ I’m thinkin’ it wouldn’t be right healthy fer ye ef he was in sight.”

The stranger laughed a little, showing a row of very white teeth.

“Don’t he want a railroad through his place?”

“Not ef the court knows herself, he don’t, nor through his gap nuther.”

“Does he own that gap?”

“Ain’t nobody else owned it fer forty year.”

The engineer looked back into the shadows cast by the beetling cliffs, and then up along his line of stakes.

“Well,” he replied, “all I have to say is, speaking from a railroad point of view, he’s got a valuable property.”

He glanced ahead at his flagman and directed him to a point farther up in the field, to which point, having fixed and recorded it, he himself hastened, followed by Gabriel and Dannie. Up to this moment the boy had not opened his mouth. Now, with the ring of rising indignation in his voice, he spoke up:—

“Has this railroad got a right to run through my gran’father’s land without his permission?”

Either the engineer was in haste and did not wish to be again interrupted, or else he did not think the boy of sufficient consequence to demand his attention; for, after looking him over for a moment, he went on with his work without replying.

Dannie repeated the question.

“I say has your railroad got a right to run through my gran’father’s land if he don’t want it to?”

The man evidently decided to reply.

“Yes,” he said snappishly, “got a right to run plumb through his house; and I’m not sure but we shall if he does any kicking.”

“An’ have you got a right to run through that graveyard down yonder?”

“Oh! graveyards don’t count when there’s a railroad to be built. Come! you’re right in my line of sight. Get over in the road there if you want to see. Hadn’t you better run home, anyway, and tell the old man to look out for his cattle? First thing he knows the engine will be a-puffing, and the bell a-ringing, and the whistle a-blowing right through his barnyard, scaring all his live-stock into fits.”

This was the last straw. It was bad enough to drive a stake in his grandfather’s graveyard; it was worse to order him out of his grandfather’s field; but to ridicule, in that coarse way, the old man whom he loved, that

was the crowning insult. Dannie's face was white, and his hands, still tight in his trousers pockets, were clenched in anger.

"This land is my gran'father's, an' I'll stand where I please on it," he declared. "An' that graveyard is my gran'father's, an' your railroad'll never lay a tie nor put a rail in it while Gran'pap and I have breath in our bodies. An' your making fun of an old man like him when he ain't here is the act of a coward!"



"This land is my gran'father's, an' I'll stand where I please on it."

The boy stopped, breathless, his breast heaving and his eyes flashing. Gabriel, his face glowing with exultation at the lad's spirit, pulled his old horn from his pocket, thrust it to his lips, and gave a tremendous blast. The

engineer stopped in the middle of a record, looked the boy over again from head to foot, and then burst into a hearty laugh.

“You’ll do!” he exclaimed. “Stand right where you are as long as you want to. If you don’t own this farm some day, it won’t be because you don’t deserve to. I’m through, anyway,” he added, glancing at his watch. “Put a plug there, John,” addressing an axeman, “and tell the boys to chain up. The country beyond this is open and free—room for fifty railroads; but the gap is ours now, and the game is ours, and the Tidewater and Western may catch us if it can. Put a bench on the point of that rock, Miller, and then get your tools together.”

The man addressed chiselled a cross on the projecting crown of a huge rock near by, the leveller took the height of the point and recorded it, and the work of the day was done. The engineer removed the head of his transit from the tripod, and as the rest of the party faced toward the gap, he turned to Dannie.

“Well, good night,” he said; “I don’t like your manners, but I admire your spunk. Shall we part friends?”

He held out his hand as he spoke, but Dannie looked at him contemptuously and did not reply.

“Oh, just as you feel about it,” continued the man. “But kindly give your aged and respected grandparent this bit of advice from me, ‘Don’t fight the Delaware Valley and Eastern.’”

He waved his hand jauntily, flung back another unanswered “Good night,” and five minutes later, with the rest of his company, he entered into the dark recesses of the gap, on his way to the river and the town.

CHAPTER III

It was after dark before Abner Pickett came home. Dannie had waited long for him at the gate, his loneliness and anxiety increasing as the minutes went by. He knew, from long experience, what to expect when his grandfather should learn about the railroad survey through the gap and the graveyard. He sincerely hoped that he would learn about it before he reached home. Not that he, himself, stood in fear of his grandfather, very far from that; but he dreaded to be the bearer to him of evil tidings. Nevertheless it was with a long sigh of relief that he recognized the familiar sound of the rattling buckboard as it came up out of the darkness to his ears. Ten minutes later Abner Pickett drove up to the gate.

“Hello, Gran’pap!”

“Hello, Dan! Out rather late, ain’t you?”

“Waitin’ for you, Gran’pap.”

“Well, I’m here, an’ glad to get here. How’d things go to-day? Gabriel get the potatoes all out? Have a good time at school, Dan?”

It was evident that he had not heard about the railroad, or he certainly would not have been in this cheerful frame of mind. After mature deliberation Dannie decided that it would not be advisable to break the news to him until after he had eaten his supper.

Gabriel came out to help carry the parcels into the house and put away the team.

“I got the suspenders for you, Dan—red in the middle, with sky-blue edges an’ pink posies on the end. How does that strike you, eh?”

“Thank you, Gran’pap. They’re very nice, I’m sure.”

They all went out to the barn with the team. Abner Pickett liked to see, for himself, that his horses were well taken care of. He seldom came from town in a more cheerful mood than that which possessed him to-night. Everything had gone his way during the day, and that fact was clearly

reflected in his manner and conversation. When he went into the feed-room after the oats, taking the lantern with him, Gabriel took the opportunity to pull Dannie's sleeve, and ask in a ghostly whisper:—

“Ain't heerd about it, has 'e?”

“No, I suppose not.”

“Who's a-goin' to tell 'im?”

“Can't you?”

“Not on your life! Wouldn't do it fer the hull farm—live-stock throwed in. He'd light onto me like a thousan' o' brick. ‘Discretion is the better part o' valor when theys a job to lose,’ ez ol' Isra'l Pidgin use to say.”

“Well, then, I suppose I'll have to. Thought I'd wait till after he's had his supper. Wouldn't you?”

“Great scheme! ‘A full stummick is twin brother to a big heart,’ ez ol' Isra'l—'sh! 'sh!”

Abner Pickett came back from the feed-room with a measure brimming full with oats, and divided the grain carefully between the two horses, talking in the meantime in the most cheerful manner of the work on the farm, and of the incidents of his trip to town.

When the task at the barn was finished, they all went back to the house, and the old man sat down alone to the supper saved for him by Aunt Martha. Afterward he joined Dannie and Gabriel on the side porch. The smoke from his pipe curled up through the warm, still air, and floated about among the rafters of the ceiling.

“Ain't it about time you went to bed, Dannie?” he asked gently, lifting his feet to a resting-place on the porch railing.

“I thought I'd stay up a bit yet, Gran'pap; it's so warm an' pleasant to-night.”

“Well, I don't mind if you do.”

After that there was silence for a time. Then there was the sound of a footstep on the walk, and a man came up out of the darkness. It was David Brown, the next neighbor to the west.

“Heard you were down to the river to-day, Mr. Pickett,” he said. “Wanted to see you a minute. Thought I wouldn’t disturb you till after you’d had your supper.”

“Just finished. Glad to see you. Come up on the stoop, David, and have a chair.”

Mr. Brown accepted the invitation very willingly.

“Thought I’d run down for a minute,” he continued, “and ask about the new railroad. Thought maybe you might ’a’ heard something about it down to the river.”

“What new railroad, David?”

“Why, the Delaware Valley and Eastern, I believe they call it. I noticed they were pointing pretty straight for my place when they quit to-night.”

“I don’t quite understand. Has there been more talk about railroads?”

Mr. Brown turned to Dannie.

“Haven’t you told your grandfather about it yet?” he asked.

“Not yet,” stammered Dannie. “I—I was just going to when you came.”

Gabriel left the chair in which he was sitting next his employer, and went down and seated himself on the porch steps. Abner Pickett took his pipe from his mouth, and, grasping it firmly in the fingers of his right hand, looked questioningly from one member of the group to another.

“Well,” he said at last, “why don’t somebody speak? Are you all struck dumb? What is it about the railroad, Dannie?”

“Why, Gran’pap, they—the surveyors you know—they—they—”

“Well?”

“Whacked their stakes in regardless—” broke in Gabriel, in his intense anxiety to help Dannie out.

Abner Pickett turned on him savagely:—

“Shut up, you fool!” he commanded. “Go on, Dannie.”

“Well, they ran a railroad line up through the gap an’ stopped at the upper end of the potato lot.”

It was out at last, much to Dannie's relief. When Abner Pickett spoke again, his voice was as quiet and steady as though he were discussing nothing of greater moment than crops or cattle.

"Do it to-day, did they?" he asked.

"Yes," replied Dannie, "to-day."

"Set their stakes?"

"Yes, set their stakes."

"Anything done to prevent 'em?"

"Why, no. I couldn't do anything. I told 'em that they would never build their railroad, though."

"Laughed at you, didn't they?"

Dannie's cheeks flushed with mortification and anger as he recalled his interview with the engineer.

"Why, yes, they did; but I told 'em—"

"No matter what you told 'em; was anything done?"

The rising inflection in the old man's voice warned his hearers that he was no longer able to smother the fires of anger kindled in his breast.

"Nothing, Gran'pap. There were seven of them."

Again, in his anxiety to come to Dannie's assistance, Gabriel broke in:—

"I told 'em that ef Abner Pickett was there, he—"

"Shut up, you fool!"

Gabriel obeyed his employer's command without a word of comment. The silence which followed was broken by David Brown.

"Just thought I'd come over, Mr. Pickett, and inquire. Didn't know but maybe you might know what they were paying for right of way."

The old man straightened himself in his chair.

"Right o' way!" he exclaimed scornfully; "right o' way! They don't pay for it; they steal it. They pick out the best land you've got, set their stakes on it, an' call it theirs. They're thieves an' robbers, an' cowards as well. Yes,

cowards! Else why did they wait all summer to pick out a day when I was away from home an' nobody on the premises but a thirteen year old boy an' a blamed fool of a hired man. Oh! if I'd 'a' been here, I'd 'a' told 'em where to set their stakes!"

He rose to his full six feet two inches, straight as a pine tree, his neck and face crimson with anger, his blue eyes flashing fire. Neighbor Brown arose and moved awkwardly down the steps.

"Guess I'll have to be going, Mr. Pickett," he said. "Thought I'd just run over an' see—an' see if there was any news from the river."

But Abner Pickett had a parting shot to fire.

"Mind what I tell you, David Brown. If they're a-pointing toward your place, the only way to protect your rights is to set on your line fence with a shot-gun in your hands. The law won't help you, an' compensation for the right o' way is nothin' more nor less than an insult. There's my advice to you. Take it, or let it alone, as you like."

After David Brown had gone, the old man grew somewhat calmer. He took two or three turns up and down the porch, and then resumed his seat.

"Strike into the potato field, did they?" he asked of Dannie.

"Yes," was the reply; "went up through the west end of it, far as the big rock."

"Where else did they go?"

"Why, they cut across the corner of the meadow lot, an' below that they run through—"

"Well?"

"Through—oh, Gran'pap!"

The old man rose slowly to his feet again, as if impelled thereto by a dreadful thought.

"Dannie—the graveyard?"

"Yes, Gran'pap."

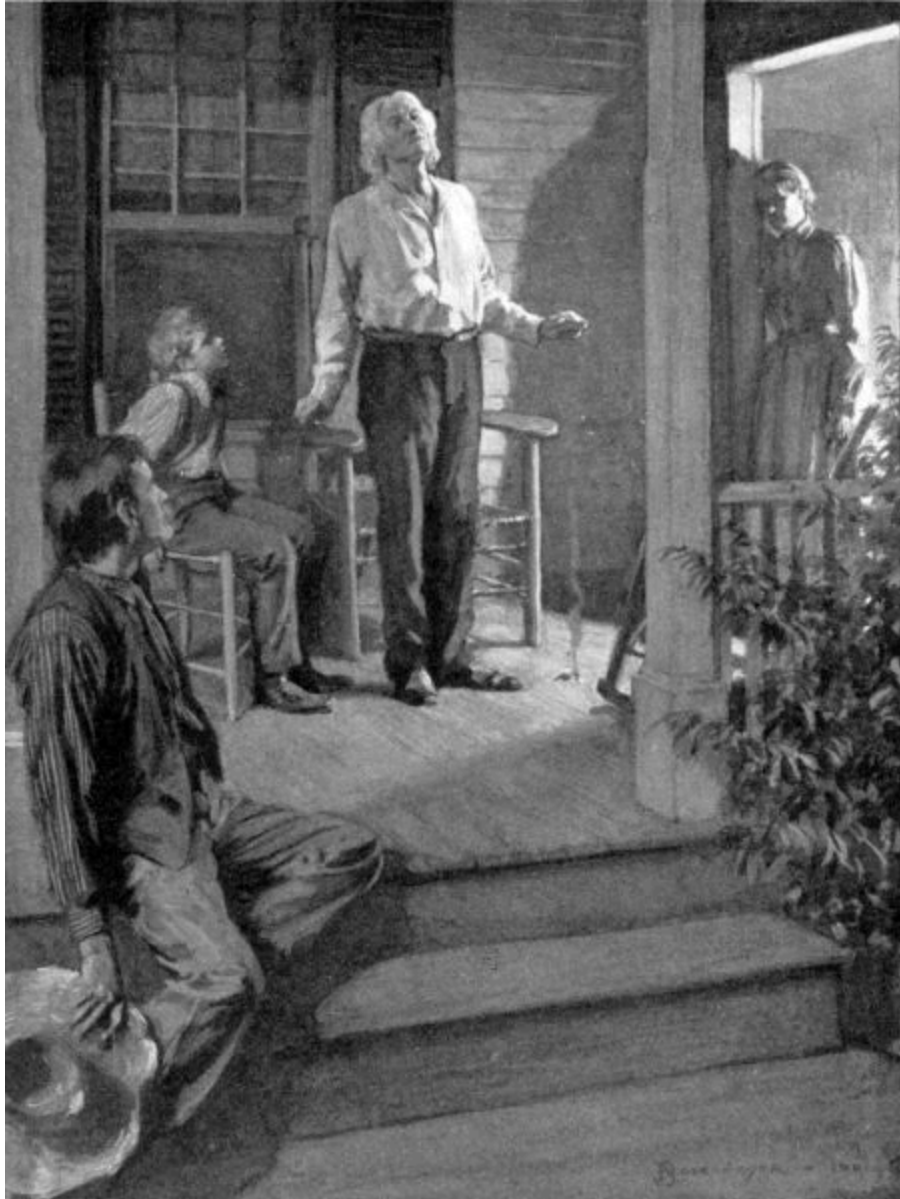
The clay pipe which Abner Pickett had been smoking broke into a dozen pieces beneath the pressure of his clenched hand, and fell rattling to the floor. It was a full minute before he asked the next question.

“Dannie, how near—how near the grave?”

“Halfway between it and the road, Gran’pap.”

They were all three standing now; and Aunt Martha, attracted by the unusual sound of their voices, had come to see if anything was wrong, and stood listening in the doorway. The old man spoke slowly, but with terrible emphasis.

“It is sacrilege. It is not only ignoring the rights o’ the living, it is violating the rights o’ the dead. No better deed could be done by any one than to pull their accursed stakes from the ground and fling ’em, one and all, into the water of the brook!”



“No better deed could be done by any one than to pull their accursed stakes from the ground, and fling ’em, one and all, into the water of the brook.”

He walked slowly across the porch and into the house; but before he had gone half-way through the kitchen he turned and came back to the door.

“Dannie,” he asked, “what kind of a lookin’ man was the engineer?”

“A short man, Gran’pap, with black eyes an’ hair.”

The old man gave a sigh of relief, but he was not yet quite satisfied.

“Was there only one of ’em?” he asked.

“Why, there was another engineer at the other instrument.”

“An’ how did he look?”

“Oh! he was tall an’ had red cheeks an’ blue eyes an’ light hair, hadn’t he, Gabriel?”

“Gabriel, who was it? Speak!”

Abner Pickett had turned upon Gabriel and made his demand so abruptly, so savagely, that the man was almost too frightened to reply.

“Why—why—” he stammered.

“Well, speak! speak! speak!”

“Why, I don’t rightly know, Mr. Pickett. I wa’n’t payin’ no attention to that one. I was lookin’ at the other one; the little one with black whiskers, the smart one, the—”

“Didn’t you see the other one at all? Don’t you know who it was? Hadn’t you ever seen ’im before? Speak!”

“Why, Mr. Pickett, as I was tellin’ ye, I didn’t pay no partic’ler attention to that one. I was—”

“You fool!”

The old man loosed his grip on the handle of the door, strode across the kitchen, and disappeared into the shadows of his own bedroom. After that, for many minutes, there was silence between Dannie and Gabriel. The hired man was the first to speak.

“Well, as ol’ Isra’l Pidgin use to say, ‘Betwixt the fool an’ the philosopher, the fool’s the happiest.’ I shan’t lose no sleep to-night; he will. Come, Dannie, it’s high time fer both of us to foller his example an’ turn in.”

As he finished speaking, he passed through the open door, across the kitchen, and up the steep staircase to his own room.

Then Aunt Martha came out to where Dannie still stood on the porch, and laid her hand lovingly on his head.

“Gabriel’s right,” she said, “it’s time you were in bed.”

“Yes, I know; but isn’t it terrible, Aunt Martha?”

“It’s unfortunate, Dannie. But he had to know it; and the sooner, the better. You know how he is; and he’ll be partly over it by morning. But he’s very good to you, Dannie, very good.”

“Yes, Aunt Martha, he is. My father couldn’t have been better to me. Where is my father, Aunt Martha?”

She was not his aunt. He had no aunt, nor uncle either, for that matter. But she had taken him in her arms when his mother died, and she had nursed him in sickness, and fed him in health, and cared for him constantly; and she was just as proud of this rugged and manly boy as ever his own mother could have been. She could have answered the boy’s question. She and she only could have given him the information he desired. For, through all the years, she had kept in touch with Charlie Pickett. She had written letters to him at midnight, and mailed them secretly, telling him of his child’s health and growth and prosperity. But she did not dare to tell this boy what she knew; she dared only to tell him what she hoped.

“He’s somewhere in the wide world, dearie. Sometime, I hope, he’ll come back to us.”

And yet she felt, in her heart, that her “sometime” would not be until Abner Pickett’s tongue was forever still.

“Why did he go away? Was Gran’pap unkind to him? Tell me that, Aunt Martha.”

“Oh, no! I can’t tell you that. I can’t set myself up as a judge between those two. But it’ll all come out right in the end, Dannie; I’m sure of that; it always does. It’s for you and me to do just the very best we can, and not worry ourselves about things we can’t help. Try to do that, Dannie. You’re a brave boy, and I’m proud of you.”

“Thank you, Aunt Martha!”

Again the boy’s attempt to learn something about his father had been foiled, as it had been so often before. He sank down into the porch chair despairingly, and leaned his head on his hand. The full moon, riding gloriously in the eastern sky, shone upon his face and revealed the tears

upon his cheeks. In spite of the good woman's counsel he could not yet repress the longing of his heart.

"I want him so, Aunt Martha!" he exclaimed. "I want him so! If he was dead, as my mother is, I'd never think of it. But somewhere he's living, and I can't get to him, and he won't come to me, and no one will tell me why, and there's such a mystery about it all. Oh, I can't understand it!"

Aunt Martha dropped to her knees beside his chair and drew his head down to her shoulder.

"There, there!" she said soothingly, "never mind! It'll all end happily, I know. You're tired to-night, and it's very late. Come, go to bed now, that's a good boy. Things'll look brighter in the morning."

So, with gentle words, she led him to his room, gave him a tender good-night, and then went about her duties, one of those sweet souls that love to smooth out the hard places on life's pathway for the tender feet of others. Thank Heaven that they live!

Dannie went to bed, but not to sleep. He could not forget his grandfather's mighty anger; and the old man's declaration, made with such terrible emphasis, kept ringing in his ears, "No better deed could be done by any one than to pull their accursed stakes from the ground and fling 'em, one and all, into the water of the brook."

After a while he rose and looked out of the window. The country was flooded with moonlight. The woods and fields were bathed in it. The willows that marked the sinuous course of the brook were transformed into shivering masses of silver. The public road, leading to the west, wound, luminously gray, through the meadow and under the trees. Black, in the shadowed face of the ridge, lay the mouth of the gap, and white and clear-cut against it shone out the marble column that marked the sacred grave. Dannie imagined that he could almost see the line of stakes set by the engineers, starting at the big rock in the potato field, cutting down by the corner of the meadow, across the road, through the graveyard, and into the gap. He wondered how long it would be before the railroad would be built, before the trains would be rolling by, before the greensward of the burial place would be cut and slashed and torn by the picks and spades of workmen, before the graves themselves would tremble and shrink beneath

the strain and stress of ponderous engines and thundering trains. The thing was too dreadful to contemplate. And again, more clear, more distinct, more impressive than ever, the words of Abner Pickett rang through his mind, "No better deed could be done by any one than to pull their accursed stakes from the ground and fling 'em, one and all, into the water of the brook."

Then there came into his mind a thought that, all in a moment, set his heart throbbing tumultuously, and his breast heaving with excitement. Well, why not? Abner Pickett had declared that no better deed could be done by any one. If that were true, was not Abner Pickett's grandson the one to do it? And if it were to be done, could there be a more favorable time in which to do it than this glorious moonlight night? If, when the morning dawned, those hated stakes had disappeared, would not Abner Pickett be again in possession of every right in his own land, with the power to keep it; and would not the insult to the dead be properly avenged?

The more Dannie thought of the scheme, the more firmly it took possession of his mind, the more thoroughly he became convinced that it was right and just for him to carry out the desire so forcibly expressed by his grandfather. From the very nature of the enterprise it was apparent to him that he could take no one into his confidence. Whatever was done must be done by him alone. And there was no time to lose. He began, mechanically, to put on his clothes, and finished the task in nervous haste. He crept down the stairs in his stocking feet, with his shoes in his hand, found his cap, slid back the bolt on the hall door, and passed out on the front porch. Max, the dog, came from the woodhouse, barking softly, and, leaping up on him, tried to lick his face.

"Down, old fellow, down! No, you can't go. Back to your box; back!"

He led the way back to the woodhouse, ordered the dog to his bed again, found his own hatchet, and then passed hurriedly down the path to the gate. Once in the road, he began to run, and did not stop till he had reached the fence marking the western limit of the potato field. He climbed hastily over and began to hunt for the last stake set by the surveyors. When he found it he loosened it with two blows of his hatchet, pulled it from the ground, and started back to find the next one. This also he removed, and kept on down the line, treating all stakes in his course in the same way. When he crossed the road and came to the border of the brook he threw his armful of stakes

into the water and, standing there triumphantly, he saw them float away. Then he climbed over the stone wall and entered the graveyard. He found the stake set in the centre of the plot, pulled it from its fastening in the greensward, and flung it gleefully after the others. He felt that he had now given this cherished half-acre again wholly into the possession of his grandfather, and that he had, so far as in him lay, avenged the insult to the dead.

But he did not stop here. He had no thought of doing so. He was flushed with his triumph, and the spirit of destruction was aflame in his breast. Following down the line of survey, he drew stake after stake from the yielding soil, and consigned them all to the mercy of the stream. Already he had entered the gap. The full moon that shone down between the precipitous walls of the gorge made the road that wound along the base of the northerly cliff almost as light as day. For half a mile there was scarcely room for the road and the brook to pass through, so narrow was the space between the towering heights on either side. Some of the stakes indeed were set in the bed of the stream, while others encroached on the travelled track of the highway. Some of them, in the shadow of rock or tree or bush, Dannie had to search to find. But not one escaped his vigilance—not one. And when, at last, he emerged from the gap and came out on the eastern face of the ridge that flanked the Delaware, he had not left a mark or a monument behind him to indicate that a corps of engineers had ever passed that way.

Here the road forks; one branch going to the north and reaching Port Lenox, the up-river town, the other descending rapidly to the village of Fisher's Eddy on the south. But the brook, unchecked, goes straight on, down the rugged hillside, churned into foam, dashed into spray, leaping from rock to rock, losing itself at last in the slow-moving flood of the Delaware. Dannie stood for a moment looking out over the broad valley and the shining river, and down at the few twinkling lights of the village to the south. Then he turned again to his yet uncompleted task. The line of survey followed the public road to the north, keeping somewhat above it in its descent, and for nearly half a mile farther the boy had no trouble in finding the stakes, tearing them from their beds and flinging them down the steep declivity into the tangle of rocks and brushwood below. When he had gone to the limit of his grandfather's land, he stopped and turned back. He was

tired. He did not know how late it might be. He felt that he must hurry home. So he hastened up the road, along the easterly face of the hillside now falling into shadow, and entered the mouth of the gorge. Between the great rock faces, now bright in the moonlight, now dark in the shade, he trudged wearily. When he was halfway through the glen, he heard the sound of voices ahead of him. He stood still and listened. Men were talking in subdued tones. There was a splash in the water, the crackling of dry brush, the tapping of wood as though some one were driving stakes, the clinking of steel as though a chain were being dragged along the ground. Then, from behind a projecting ledge, a man advanced into the moonlight, and, before Dannie, in his surprise and fear, could either speak or run, the light of a lantern was flashed into his face.

CHAPTER IV

“Who are you?” demanded the man with the lantern, “and what are you doing here at this time o’ night?”

Dannie was too much frightened to answer at once, and he began to back away.

“Stand still!” commanded the man. “No one’s going to hurt you. I simply want to know who you are and where you are going.”

“I—I’m going home,” faltered Dannie.

A voice came from out the shadows up the road.

“What’s the matter down there, John?”

“I don’t know,” replied John. “Here’s a boy with a hatchet, alone. Looks suspicious, very.”

“Tell him to stay where he is till I get there. Go ahead now and give me a point to turn on.”

“You hear him?” said John to Dannie. “You stand right there by that rock, and don’t you move an inch till he comes up.”

The man with the lantern had an engineer’s signal pole. He was followed by an axeman with stakes. They went ahead some fifty feet, and, with pole and lantern, under the direction of the transitman back in the darkness, located a point and drove a stake.

It did not take Dannie long to comprehend that this was another surveying party, making a night survey through the gap. It was a strange thing to do—very strange. He could not understand the purpose of it at all. Did these people know of the afternoon survey? Did they know of his night work of destruction? And if they did, would they make him suffer for it? The situation was as uncomfortable for Dannie as it was mysterious. But he had scant time to revolve these questions in his mind before the transitman and his attendant came hurrying down to where the boy was standing.

A tall, fine-looking fellow this transitman was; but the moonlight, or possibly excitement or fatigue, threw a pallor across his face, and in his penetrating eyes there was a look of anxiety or trouble.

“How is this, my boy?” he said. “What are you doing here? Tell me quickly. I haven’t time to parley.”

But Dannie had no mind to give him the desired information.

He had grown suddenly fearful of the consequences of his deed of destruction. He was not untruthful about it, though.

“I had rather not tell you, sir,” he replied frankly.

“Very well, I shall not oblige you to,” said the man. “But, under these circumstances, I will have to detain you. Morris,” addressing the head chainman, “keep this boy with you. Don’t let him give any signals, and don’t let him escape. We’ll dispose of him later. Too much depends on this night’s work to take any risks with strangers. Come along, James!”

He shouldered his transit, and, followed by his attendant, started rapidly ahead. Dannie, under the eye of the head chainman, walked on down the road. The axemen had already gone forward to clear the way, and the rodman and leveller were following close behind.

It was a unique task, this location of a railroad route in the night-time. But, aided by the bright moonlight and the glare of lamps for signals, it became not only possible of performance, but perfectly practicable.

Slowly the line of stakes stretched out, following, with almost minute exactness, the route surveyed in the afternoon.

Indeed, there was room in the gap but for one railroad, and the second survey had, of necessity, to take practically the same course as the first.

As Dannie walked along in the company of the head chainman, it became apparent to him that these men did not know of the survey made by the corps of engineers in the afternoon; much less did they know of his work of obliteration. The serious results of that work began also to weigh more deeply on him. A hundred questions arose in his mind. If the line of stakes set in the afternoon were still standing, would these men be here setting theirs to-night? And when they learned that a prior survey had been made, what would they do? And if any one should ever know that he, Dannie

Pickett, had destroyed that line of stakes, what would happen then to him? And of what avail was it, anyway, to wipe out the marks of one location only to have the stakes of another spring up in their places scarcely an hour later? But with all his questioning he could decide upon but one thing, and that was that under any circumstances he must keep his own counsel and reveal nothing.

At last the end of the gap was reached, but the railroad route was located for yet another thousand feet down the north slope of the hill.

“There is plenty of room here,” said the transitman, finally; “there is no object in going farther to-night. We’re safely through the gap. We’re first through the gap, and the gap route is ours by right of prior location.”

Dannie recalled the exultant declaration, made under similar circumstances, by the engineer who conducted the afternoon survey. Surely the plot was thickening.

“You might step down the road a bit, John,” added the transitman, “while we are getting the things together here, and see if you can find any trace of the D. V. and E. people. Nicholson should have ended his survey somewhere near here last evening if he had good luck.”

Ten minutes later John returned and reported that he had found the D. V. and E. stakes about three hundred feet farther down the road, where the party had evidently stopped for the night.

The transitman laughed softly.

“I should like to be behind a tree or a rock,” he said, “and see Nicholson when he comes here after daylight to continue his survey and finds his proposed gap route already taken.”

Ever more deeply as he listened, Dannie appreciated the difficulties in which he had involved the railroad companies, and the dangers into which he himself had plunged. One thing only he was sure of, and that was that his mouth must remain closed.

When everything was ready they all started back, at a good pace, up the hill and into the glen.

“Here, my boy,” said the transitman, “come with me. I want to talk with you.”

Dannie fell back and walked with him. They were the last two in the party.

“There is no need of our being severe with you any longer,” continued the man. “Our task is accomplished, our route is located, no one can interfere with us now. But you understand it was necessary, in order to carry out our scheme successfully, that we shouldn’t be disturbed until after we were through the gap. We couldn’t run the risk of having you go back up or down the road and rouse the country, or the other corps of engineers, or even the owner of this property. So we had to take you along with us. I am sorry to have caused you any inconvenience or anxiety, and I am sure I beg your pardon if I have done so; but really, you see, we couldn’t help it.”

He had a very musical voice and winning manner, this big engineer, now that the stress of his work was off his mind; and Dannie felt at once the strange attraction of his presence.

“Oh! it don’t matter very much,” he replied, “so long as I get home before daylight. They—they don’t know I’m out.”

As he spoke he glanced back over his shoulder toward the eastern sky, already paling perceptibly at the horizon.

“Do you live far from here?” inquired the man.

“Not very far; just up the road a ways.”

“At what house? I used to be somewhat acquainted about here years ago. Maybe I know your people.”

“Why—why—well, if you please, I’d rather not tell.”

“You needn’t. It’s none of my business anyway. But let me ask you just one question. Do you know Abner Pickett?”

“Yes, sir, I do.”

“Does he still own this gap?”

“Yes, sir, he does.”

“Do you know—is he well?”

“Yes, sir, I believe so. I saw him yesterday; he went up to Port Lenox.”

“Thank you, my boy, thank you. Do you happen to know whether he objects to having a railroad in the gap?”

“I think he does. I heard him say last night that—that—”

“Well?”

“Well, I don’t think he wants a railroad across his property. I think he’d like to see all the railroad stakes pulled out.”

“I’m sorry.”

After that, for some minutes, there was silence. The man seemed to be in deep thought, and Dannie pondered long over a question he desired to ask. At last he found courage to ask it.

“Is it wrong—is it against the law to pull out railroad stakes?”

“Well, I think the court would deal pretty severely with a person convicted of pulling out or destroying stakes set by an engineer.”

“Would such a person have to go to jail?”

“I should think it very likely. Why do you ask?”

“Oh! I knew a fellow once who—who—started to pull some out.”

“It’s a good thing he didn’t get any farther with it. A county jail is not a pleasant place in which to spend one’s time.”

Dannie knew that. He had visited the jail once, with his grandfather, and had seen the prisoners in their little iron-barred cells, and had thought how dreadful it must be to be locked up there, especially in the night-time.

But there was one hope still left to him.

“Suppose,” he suggested, “suppose the man who pulled out the stakes was the one who owned the land?”

“That wouldn’t help it much. A railroad has a right to locate its route through any man’s land.”

“But suppose they drove their stakes in his graveyard?”

The man stopped short and looked his questioner in the eyes. But a cloud had come up and covered the face of the moon, and the shadow of it made

the boy's features indistinct. Yet these were strange questions for a lad of his size to be asking.

"I don't think," replied the man, as he started on, "I don't think that a railroad company would have a right to locate its route through a graveyard, and if it did—well, if it was my graveyard, I believe I would pull up the stakes set in it and throw them into the brook."

"Thank you! Oh, thank you! That's just what—what a fellow did once that I knew."

"Yes?"

"Yes, he—he—" But in the midst of his stammering a new thought came to him. "You ran your line through a graveyard, didn't you?"

"Do you mean Abner Pickett's graveyard?"

"Yes."

"No; I went around it. I followed my tangent to the south side of the brook opposite the graveyard,—there's a bit of shelving beach there which gave room for the location,—and then I put in a reverse curve and came down on this side again, just at the entrance to the gap. Here, I'll show you how I did it. Come on!"

The rest of the party, walking more rapidly, were far ahead. The engineer quickened his pace, and Dannie hurried along by his side. The subject had become one of absorbing interest to both of them.

"My knowledge of the locality," continued the man, "served me handsomely for a night survey. I used to know every foot of the ground here when I was a boy. I knew where the trout hid in this stream. I knew where the squirrels ran over that hill. I knew where the blackberries were most luscious, and where the nuts fell thickest in the first frost. Why, I could have walked, barefooted, from end to end of this gap, on the darkest night you ever saw, and never stubbed my foot against a stone, I was so familiar with the road. Oh, those were happy days!"

By this time they had reached the western opening into the glen.

"Here," said the man, pointing to a stake at the roadside, "here is where we come in, and there," indicating the curve with a sweep of his arm, "is

where we cross the brook, crowd the foot of the ledge opposite the graveyard, and strike a tangent that carries us in a straight line for more than fifteen hundred feet.”

“I’m so glad you didn’t touch the graveyard!” said Dannie.

“My boy, if this railroad is not built until I run a line for it through that burial-place, you will never live to see the first tie laid. Abner Pickett himself holds this sacred plot in no greater reverence than do I.”

They were moving on up the road now toward the graveyard wall.

“I’m so glad,” repeated Dannie, softly; “I’m so glad for Gran’pap’s sake.”

The next moment the man had a strong hand on each of the boy’s shoulders, and was looking down into his face with a fierce eagerness that frightened him.

“Who are you?” he demanded. “Tell me your name, quick!”

That imperative request gave room for no evasion. There could be but one reply.

“I’m Abner Pickett’s grandson,” faltered the boy. “My name is Dannie Pickett.”

The man loosed his grip on the lad’s shoulders and took his hands instead. Dannie felt those clear blue eyes piercing him through and through. For a full minute they stood thus, then the grasp was relaxed, the man turned his face upward in the moonlight, and it seemed as if he were in prayer. When Dannie saw his eyes again they were full of tears; but there was a smile on his countenance, and, when he spoke, his voice was very sweet and gentle.

“Do not mind me,” he said. “I have a boy whom I have not seen since he was a little baby. You must be about his age. I think you must look very much like him. Strangest of all, his name, too, is Dannie. Come, let us go. It will soon be daylight. See the red in the east. I must find my men, and you must get to your home.”

He took the boy’s hand and they started on. But Dannie’s heart was beating to the music of this man’s voice, and, swayed by the spell of his

presence, he felt that to him must be told the secret of his midnight errand in the glen.

“I want to tell you,” he said, “what I was doing in the gap to-night. I feel as though you ought to know.”

“No,” was the quick reply; “you need not confide in me. I cannot counsel you now. Others must do that yet for a time. I only trust that your errand was one of which you need not be ashamed. Do I walk too fast for you? There is so little time to lose.”

When they came opposite the marble column that marked the grave of Dannie’s mother, they stopped instinctively.

“This is Gran’pap’s graveyard,” said the boy, simply, “and that is where my mother is buried.”

The man did not answer.

He had removed his hat and stood gazing intently at the white shaft and at the vine-covered mound at its base. For a full minute he stood there, motionless as the monument itself. Then he turned to the boy.

“Let the thought of her be as dear and sweet to you always as your own life,” he said. “Come!”

With Dannie’s hand still in his, he hastened on. The other members of the party were far ahead. The morning glow was spreading in the east, and in the west the paling moon was dropping down behind the far-off hills. The autumn mist came up and compassed them about, and now and then some sound betokening daybreak came muffled to their ears. On the souls of both the solemn hush of morning rested, and neither of them broke it by a single word.

When the gate that led to the Pickett farmhouse was reached, they both stopped. Again the man bared his head as he gazed through the morning mist at the dim outline of the old homestead. Then he bent down and took Dannie’s face between his hands, and touched the tangled hair on the boy’s forehead with his lips.

“Good-by!” he said. “[Good-by, my boy](#); and God bless you and keep you!”



“Good-by, my boy!”

The next moment he was gone, a stalwart, splendid figure, striding like an athlete through the luminous haze.

Is it strange that up from Dannie’s heart came again the old desire, and out from his lips the spoken longing:—

“Oh, if I only had a father—like him!”

But there was no time now to indulge in dreams or disappointments. He felt that he must get at once into the house and to bed.

He went up the side path, and around to the woodshed, where he left the hatchet. Max, the dog, came whining and crouching at his feet, begging for notice and caresses. Dannie paid little heed to him, but hurried on. As he turned the corner of the house by the kitchen porch, he came face to face with his grandfather.

“Why, Dannie!” exclaimed the old man, “what routed you out so early this morning?”

For a moment Dannie was at a loss for an answer.

“Oh!” he stammered at last, “I—I just thought I’d come out and look around.”

“That’s just what I thought I’d do, too,” was the response. “I kind o’ want to see where those stakes are set. I want to know how much o’ my land, an’ what part of it, I’m expected to present to the railroad company. Would you like to come along, Dan?”

“Yes, Gran’pap, I would.”

They passed out at the gate and down the road, and Dannie led the way to the potato field.

Near the big rock they found a stake. It was one set by the engineers who made the last survey, but it was within five feet of the place occupied by the one Dannie had pulled out the night before. The old man gazed at it bitterly.

“Takes the best part o’ the lot,” he said. “Spoils the meadow,” he continued, as he looked down the line, “cuts my farm in two, prevents me from gettin’ to water, destroys the public road, a damage and a curse.”

They followed down the line of stakes as he talked. The survey took almost exactly the same route as had the one made by the D. V. & E. engineers the afternoon before. The crossing at the public road was not five feet from the first location, for Dannie saw the place in the bank where he had pulled out the stake.

“Ruins the road,” muttered the old man, “ruins the brook, ruins the gap, ruins the farm, despoils the tomb!”

He was working himself into a passion again. Dannie foresaw that in ten minutes more he would be at a white heat.

“Why don’t you pull the stakes out, Gran’pap, an’ throw ’em into the brook?”

Dannie never knew what strange impulse forced him to ask that question. The old man turned on him instantly.

“Don’t speak of it; it’s against the law.”

“But you said last night that no better deed could be done.”

“I was in a temper last night an’ said things I shouldn’t. No Pickett was ever yet arrested for violatin’ the law. You and I don’t want to be the first ones.”

“It might be done in the night-time, Gran’pap, an’ no one be the wiser.”

Some fate was surely leading Dannie to his own undoing.

“No, that’d be cowardly, an’ no Pickett was ever yet a coward.”

Dannie winced as though his grandfather had dealt him a physical blow.

They were walking on down the road now toward the graveyard wall. The bitterness in the old man’s heart forced itself again to his lips.

“They might ’a’ taken my land, an’ my road, an’ my stream, an’ my gap, an’ all, if they’d only ’a’ let my graveyard alone. I can’t stand that. I won’t stand that. I’ll fight that. I’ll show ’em that imposin’ on the livin’ is one thing an’ insultin’ the dead is another. I’ll make ’em—”

He stopped suddenly, his gaze fixed on the line of stakes as it skirted the shore of the brook and then crossed to the other side of the stream opposite the graveyard.

“Dannie!” he exclaimed, “look! There they go across the brook. They don’t touch the graveyard. Do you see? They don’t touch it!”

He was pointing with intense excitement to the staked-out curve showing distinctly under the rising bank of fog.

“That line don’t go within ten rods o’ the graveyard anywhere, Dannie,—not within ten rods. Come, let’s see!”

He started on at a rapid pace, and, without waiting to go in by the entrance, began hastily to climb over the stone wall that surrounded the

burial-place. Reaching the centre of the plot, halfway between the monument and the road, he looked searchingly about him.

“Not a stake, Dannie!” he cried. “Not a stick nor a stone anywhere inside. Not one!”

He was as intensely delighted as though he had come suddenly upon a mine of hidden treasure. The reaction from his state of mental misery was too great to be concealed, even had he desired to hide it. All night his distressed fancy had conjured up visions of his burial-plot ripped and torn with plough and pick and spade, of his monument and headstone begrimed with the smoke and shrinking from the touch of the shrieking, thundering, plunging monster of the rail. All night, in sleepless torture, his embittered heart had burned with what he thought to be an insult to the living and an outrage on the dead. And now, to find his fancies and his fears suddenly dispelled was like waking from a dreadful dream. “But”—he turned sharply on the boy at his side:—

“You told me they ran through the graveyard! Why did you tell me that?”

“Well—they—they—I saw them in here, anyway. They must ’a’ changed it afterward. I can show you the place where the stake was set.”

Sure enough he could, and did. The hole left by it was still distinctly visible. And he pointed out also where the grass was bruised by the treading of feet and the dragging of the chain across it.

The old man was satisfied, but Dannie’s mind was in a tumult. He hardly knew which way to turn or what to say. He dreaded every question that might be asked him, lest the answer to it should involve him in some hopeless contradiction.

“Oh, what a tangled web we weave
When first we practise to deceive!”

But Abner Pickett’s delight at finding his graveyard free left him in no mood to question or to criticise. The predominant thought in his mind was that the engineer, at the cost of increased distance, heavier grading, and additional curvature, had avoided cutting through his graveyard. It relieved his mind and gratified his pride.

“Look, Dannie!” he exclaimed, with a sweep of his arm toward the mouth of the gap, “ain’t that a beautiful curve? I tell you the engineer that laid that out knew his business. What kind of a lookin’ man did you say he was, Dannie?”

“Tall, Gran’pap. Han’some. Light hair, and blue eyes that looked you through. Voice like a—”

“What, Dannie! What! Light hair an’ blue eyes?”

“Why—no. The man I talked with yesterday afternoon had dark eyes an’ hair an’ whiskers. I don’t know as he was so very tall, either. I don’t know, —oh, I don’t know anything, I’m so tired an’ hungry an’ done out!”

And he was tired and hungry and done out. He dropped to the greensward at his grandfather’s feet, this boy of thirteen, and burst into tears.

And Abner Pickett, believing that the boy had undergone only what he himself had suffered, bent down to him with soothing words, lifted him to his feet, and, hand in hand, through the ever deepening mist, these two walked the road toward home.

CHAPTER V

It is the law in Pennsylvania that when a railroad company locates its route for a railroad by making its survey and setting its stakes, and that route is duly approved by its board of directors, it can hold the location as against any other company making a subsequent survey.

At the time of the events here recorded, two rival railroad corporations had become suddenly aware of the value of Pickett's Gap as an outlet from the anthracite coal fields easterly to the Delaware river and to tidewater. Not that the project of building a railroad across that section of country was by any means a new one. On the contrary, it had been talked of for years. Indeed, a survey had once been made to within a mile of the mouth of the gap, but the stakes had rotted away or been destroyed long before. It was due to a combination of certain great railroad and coal interests that the subject had been now revived. And the engineers, looking over the ground, became suddenly impressed with the importance of securing the Pickett's Gap route. From that moment it was a race between the Delaware Valley and Eastern Railroad Company and the Tidewater and Western Railroad Company to secure the right of way through Pickett's Gap. This gorge, the only opening for fifteen miles through the ridge that flanked the westerly shore of the Delaware, became thenceforth the objective point toward which the engineers of both railroad companies bent all their energies. The D. V. & E. worked up toward it from the Delaware and the east; while the T. & W. came down the country from the west, adopting, unknown to its rival, the old survey of former years. From information received at the office of the T. & W. it was known that Nicholson, the D. V. & E. engineer, was, on a certain day in September, working up from the shore of the Delaware toward the mouth of the gorge, and that, in all probability, he would set his stakes in that coveted glen on the following day. There was only one way to outwit him and gain precedence, and that was by connecting with the terminal point of the old survey, and making a night location through the gap. This scheme originated in the fertile mind of the chief engineer of the T. & W., and he sent his most trusted lieutenant, Charlie Pickett, to carry out

the plan. No better selection could have been made, for Charlie Pickett was familiar with every foot of the ground. By his own unaided effort through thirteen years he had risen through the various positions of axeman, chainman, flagman, rodman, and leveller, until now, as transitman, he was intrusted with the most careful and critical work of one of the youngest and most vigorous of the railroad corporations of Pennsylvania.

But both Pickett and his chief had miscalculated Nicholson's energy. Instead of stopping for the night on the easterly slope of the ridge that overlooked the Delaware, that wiry and energetic custodian of the fortunes of the D. V. & E. had, as we have already seen, pushed his survey vigorously through Pickett's Gap, and was the first to occupy the route. That Charlie Pickett did not know this when, in the moonlight, he set his stakes between the walls of the glen, was not his fault. There was nothing on the ground to indicate that any engineer had preceded him. Nor did Nicholson know, when he led his men up through the gap on the following morning, that the stakes at which he glanced as he hurried on had not been set by him. The mist hung about him like a thick cloud when he set up his instrument near the big rock in the potato field and continued his survey, and it was no wonder that the change in the line of stakes did not attract his attention. Indeed, the true state of things was not known that day nor the next by any person save one,—poor, unfortunate Dannie Pickett. And the longer he held his secret locked in his breast, the more fearful he became of a final disclosure. How long his reckless, not to say criminal, deed could remain unknown to others he did not know; he did not dare to think.

A few days later Abner Pickett was sitting on his porch enjoying an after-dinner smoke. Dannie was at school, and Gabriel was in the back lot. A very trimly dressed young man descended from a wagon at the front gate and walked up the path. It was with fear and trembling that he approached Abner Pickett. He had heard many stories of the old man's peculiarities, of his opposition to railroads in general, and of his bitter resentment against the D. V. & E. in particular. He had been led to believe that it would be almost safer to beard a lion in its den, than to face this irrepressible old man in his own home on such an errand as this.

It was the duty of his company, however, under the law, to make at least an attempt to settle, and it was his mission to-day, however fruitless it might

be, to use all of his skill and strategy in the effort to purchase a right of way through Pickett's Gap. He put on a most courteous demeanor.

"This is Mr. Pickett, I believe?"

"Pickett's my name," replied the old man, calmly. "Will you come up on the stoop an' take a chair?"

"Thank you very much. My name is Safford, Mr. Pickett. I represent the Delaware Valley and Eastern Railroad Company."

"Yes?"

"You are doubtless aware that this company has laid out a route for a railroad through your land?"

"Yes, I know it."

Here the agent launched out into a eulogy of the company, and dwelt eloquently upon the advantages which would accrue to the country in general, and to the owner of the Pickett farm in particular, by reason of the building of the railroad as surveyed. Abner Pickett did not appear to be impressed in the slightest degree. The agent began to feel that his worst fears were about to be realized.

"We need the right to pass through your property, Mr. Pickett, and we are willing to pay you for it, I may say liberally. Have you—a—considered what compensation would be satisfactory to you?"

"No, I haven't."

"Well, if I am correctly informed, we run through your land a distance of about seven thousand feet. In no place do we need or take more than fifty feet in width. That would make, as you see, about eight acres. Now, I really don't know what your land is worth per acre."

The rising inflection at the end of this last sentence called for an answer; but none was vouchsafed by Abner Pickett. He continued to puff slowly at his pipe and gaze out toward the distant hills.

"As I said, Mr. Pickett, we are willing to pay you liberally. We consider that the right of passage through the gap is of considerable importance and much value to us. How—for instance—how would eight hundred dollars strike you?"

The agent waited, in breathless suspense, for a reply. The old man shifted his gaze from the distant landscape to the agent's face. He removed his pipe slowly from his mouth, leaned back in his chair, and answered:—

“Young man, it ain't worth it.”

The representative of the company was stricken dumb with astonishment. He had never before had an experience like this. Men usually considered their property worth twice what he offered to pay them for it. Indeed, he had been prepared to double his offer to the owner of Pickett's Gap, rather than have the slightest difficulty or delay in procuring a right of way. When he had partially recovered from his surprise, he found voice to say:—

“Well, Mr. Pickett, that gap, you know, is a most favorable outlet for us. We really need it, and are willing to pay you for it what it is worth.”

“Just so. But you can't pay me any such price as that. I say it ain't worth it.”

The agent was still wondering whether or not he was dreaming. But his sense of a good bargain was beginning to reassert itself, and he inquired hesitatingly:—

“What, for instance, would you consider right, Mr. Pickett? What, in short, may I ask is your figure?”

“Let me see. How many acres do you say you take?”

“About eight acres all together.”

“So! Well, my land is worth twenty dollars an acre, take it on an average.”

“But, Mr. Pickett, that would only come to a hundred and sixty dollars. That is—pardon me—but that is really inadequate. Why, we only take an acre and a half of John Davis, just above you here, and we pay him a hundred and fifty dollars, and do it cheerfully.”

“Young man, I ain't runnin' John Davis's business, an' he ain't runnin' mine. If you want that land at twenty dollars an acre, you can have it. If you don't, you can let it alone. I shan't take a cent more nor less.”

Continuing to protest, the agent drew from his pocket a blank contract of purchase and began to fill it up, drawing his chair to the little three-cornered

porch stand. Poising his pen in his hand, he looked up at the old man appealingly:—

“Let’s make it two hundred dollars, Mr. Pickett. Really, I—”

But Abner Pickett interrupted him impatiently:—

“I’ve told you what’s what. If you want the property at my figure, get your paper ready an’ I’ll sign it; if you don’t want it, say so an’ don’t waste any more o’ my time.”

That settled it. The contract was completed, and duly signed and sealed by Abner Pickett. When he had done this, he turned slowly to the agent:—



Signing the Contract.

“Now, I want to tell you just one thing, young man,” he said; “your company sent their engineers here an’ laid out their railroad in a scientific an’ gentlemanly way. They had consideration for me an’ for my property. An’ above all else—far an’ away above all else—they had respect an’ reverence for the dead. When they came to my graveyard they turned aside an’ ran around it, didn’t they?”

“Really, Mr. Pickett, I am not familiar with the details of the location. But you have seen the stakes set by the engineers, haven’t you? Well, those stakes mark the centre line of the right of way you are selling to us.”

“Very good. But if your engineers had staked a line through my graveyard, regardless of the rights o’ the livin’, or the reverence due the dead, they couldn’t ’a’ bought a square inch o’ my land for all the money they could ’a’ piled on my farm. An’ what’s more, I’d ’a’ lawed ’em, an’ jawed ’em, an’ fought ’em from now till the crack o’ doom. That’s all. Good day!”

He thrust his hat on his head, shook hands with his visitor, and strode away in the direction of the barn. The right-of-way agent watched him as he disappeared, then he put his papers carefully into his pocket, adjusted his hat at the proper angle on his head, and remarking to himself that this was certainly the most astonishing man it had ever been his good fortune to discover, he walked down the path, resumed his seat in the carriage, and drove smartly up the road. It was already beginning to rain. The heavy mist of the preceding morning had been the forerunner of a September storm. By the time night came, the rain was pouring down, the wind was blowing furiously, and it required a blazing wood fire in the sitting room of the Pickett house to maintain the comfort of the inmates. Before this fire Abner Pickett and Dannie were seated, while Aunt Martha was still busy with her household duties. Every hour that had passed since the night of his adventure had left Dannie more perplexed, more distressed, more conscience stricken, more fearful of the final result of his rash and, what seemed to him now, incomprehensible conduct. He sat looking at the blazing logs, saying nothing, but torturing his brain to find some way out of the dreadful dilemma into which he had thrust himself with such foolhardy bravery. He did not know that he had not yet reached the depth of his

anxiety and misery; but he was soon to learn it. His grandfather broke the silence.

“Right-o’-way agent was here to-day, Dannie.”

“The—the what?”

“Right-o’-way agent. The man that buys the right o’ way for the new railroad.”

“Which new railroad.”

“There’s only one that I’ve heard anything about. They call it the D. V. & E., don’t they?”

“I believe so. An’ what did he want, Gran’pap?”

“Wanted to buy the right o’ way for his railroad through my property, of course. And I sold it to him, of course. Strip fifty feet wide, right through. Sold it for a hundred an’ sixty dollars. What do you think o’ that bargain, Dan?”

“Why, Gran’pap, I’ve heard you say you wouldn’t take five thousand dollars an’ give a railroad the right to run through the gap an’ through your farm.”

“That depends on how I’m treated. These people acted the gentleman with me. They run their railroad around my graveyard at an expense to them, in the way o’ buildin’, of at least a thousan’ dollars. If they’d a-run it straight through, they couldn’t ’a’ got my land at any price.”

“But—but, how do you know they didn’t run it straight through, Gran’pap?”

“Why, haven’t you an’ me seen the stakes as plain as day, a-runnin’ across the brook an’ a-curvin’ around agin to the mouth o’ the gap? I sold ’em fifty feet wide along the line o’ their stakes—nowhere else.”

“But suppose it was some other company that set those stakes around the graveyard. Suppose the D. V. & E. had run their line right across it, an’ their stakes had got pulled out some way, an’ what you sold ’em was really through the graveyard, an’ suppose—suppose—”

“Well, what on earth are you cunjurin’ up? What’s the use o’ supposin’ things that never happened and ain’t likely to happen? You act just as though you’d gone daft on the subject o’ this railroad. What’s the matter, Dan? What ails you, anyhow?”

“Oh, I don’t know, Gran’pap. I’ve worried so about this railroad runnin’ through your—potato field.”

“I guess we can raise as many potatoes.”

“An’ your meadow.”

“We can grow as much grass.”

“An’ your gap.”

“There’s room for it there.”

Dannie made a supreme effort. He feared that his grandfather had been deceived into selling a right of way through the graveyard, and he felt that if he spoke now, and told what he knew, regardless of consequences, there might yet be time to save the old man from utter humiliation and loss.

“But they did run through your graveyard, Gran’pap. They did set their line o’ stakes right across it. I know it. I saw ’em do it.”

“So you said before. But they thought better of it afterward, an’ went around on the other side o’ the brook, didn’t they?”

“Let me tell you, Gran’pap. Let me explain. Let me—”

What Dannie would have said, how he would have explained, what confession, if any, he would have made had he not been interrupted, is one of those things that will never be known. The emergency was sudden, and he intended to meet it at any cost. But a simple interruption altered the entire current of his thought. The outer door of the kitchen was opened and Gabriel came in. It seemed as though he was blown in by the gust of wind that followed him. Something in the kitchen fell with a clatter, and the old man and the boy both started up to see what it was. The clothes-horse with the week’s washing on it, drying and airing by the fire, had blown over; but Aunt Martha picked it up before it had fairly touched the floor.

“You always did beat the world for carelessness!” growled Abner Pickett at the unfortunate hired man. “Come in here and tell me what David Brown

said about the thrashin' machine."

Gabriel hung up his wet hat and coat, muttering to himself:—

"Ef lightnin' struck 'im dead he'd jump up an' lay it onto me." Then he added aloud:—

"Says ye can have it, Mr. Pickett. Says he al'ays did like to 'commodate his neighbors."

"Well," responded the old man, "on the whole, David Brown ain't a bad neighbor. You might go further an' fare worse."

Gabriel shuffled along into the sitting room and drew a chair up to the fire.

"Queer thing David was a-tellin' me about the railroad," he said.

Dannie's heart began to thump in his breast. He knew, intuitively, that the story of the night survey was coming. And with that story would come also—what? He glanced fearfully up at his grandfather, who had settled back again in his big chair, and was puffing slowly at his pipe.

"Well, give it to us," said the old man.

"W'y," responded Gabriel, "seems 'at along in the night sometime, after them first fellers had set their stakes, 'nother lot o' surveyors come down the crick, an' run another line through the gap by moonlight, or lamplight, or suthin'. The talk is 'at they made their survey for the Tidewater an' Western. Tell ye what! ef them two railroads git to fightin' each other, the fur's got to fly. 'The bigger the barrel, the bigger the battle,' ez ol' Isra'l Pidgin use to say."

Abner Pickett straightened up in his chair, took his pipe from his mouth and looked at the hired man incredulously.

"Fact, Mr. Pickett," continued Gabriel. "Queer thing about it, too. The fellers that made the night survey run aroun' the graveyard stiddy crossin' it. I couldn't make out, before, what them stakes was a-doin' t'other side o' the crick."

The old man was already beginning to lose his temper, as he foresaw the possible consequences to him if the story told by Gabriel should prove to be true.

“Why, you fool!” he ejaculated, “there’s only one line o’ stakes. I’ve seen ’em all myself. I’ve been over the whole line.”

The hired man was not in the least disturbed at being called a fool by Abner Pickett. He had gotten over being sensitive on that point years before. Seeing that his story had aroused the keenest interest of his listener, he went on, with the most apparent enjoyment.

“That’s the queerest part of it. Both railroads claim the stakes. Fellers ’at done the night work says they wan’t a stick ner a stake to be seen ner found from the big rock in the potater field to the land line t’other side o’ the gap when they made their survey. Fellers ’at done the afternoon work swears ’at their stakes was set ev’ry fifty feet from end to end o’ the line, an’ was all in place at six o’clock in the evenin’ w’en they knocked off work.”

Both the old man and Dannie were listening now with intense earnestness. Gabriel recrossed his legs, smacked his lips in keen enjoyment of the sensation he felt he was creating, and kept on.

“Fact, Mr. Pickett! Queerest thing of all; I’d swear them fellers in the afternoon run their line straight acrost the graveyard. Seen ’em drive stakes there with my own eyes. Didn’t you, Dannie?”

“Yes, I did, Gabriel.”

“Yes; well, where was them stakes next mornin’? I hunted high an’ low fer ’em; couldn’t find hide ner hair of ary one. Stiddy that there was them stakes acrost the crick. What do you think o’ that, anyhow, Mr. Pickett?”

Mr. Pickett turned in his chair till he was squarely face to face with his informant.

“Did David Brown tell you all that?” he asked slowly.

“Ev’ry word of it, Mr. Pickett, an’ more.”

“Then either David Brown lies, or else you lie, or else I’m the biggest fool in Meredith County.”

Still Gabriel was not in the least disconcerted.

“Yes,” he went on, “jes so. David was a-tellin’ me ’at the right-o’-way agent told him ’at you’d sold the right to build their railroad through your

propity to the D. V. & E. Comp'ny fer a hundred an' sixty dollars. Says you might jest as well 'a' got a thousand ef you'd 'a' stuck fer it."

"It's none of David Brown's business what I got for the right o' way, nor yours, either."

"No; that's right. But David, he says that ain't the wust of it. He says ye've sold 'em the right to build the railroad where they run the line, straight plunk through the graveyard. An' David says he don't believe ye sensed it when ye done it."

This was the last straw. If Abner Pickett was angry before, he was furious now. He rose from his chair and straightened himself to his full height, while the hot blood reddened his neck and face as it always did in his moments of passion. It was bad enough, in all conscience, to have committed the unpardonable error of signing away his dearest rights in ignorance or through deception, but that his neighbors should know of and comment on his unspeakable folly, this was more than he could bear.

"Tell David Brown," he shouted, "to mind his own business." After a moment he continued, "An' you can take your ram's horn an' go up an' down the road to-morrow mornin' proclaimin' that Abner Pickett has been suddenly bereft of all the common sense he ever had, and invitin' the public to come down here an' gaze upon a full-fledged fool—an' that's me, if there's any truth in your lyin' and ridiculous story. Who saw these men that made the night survey, anyhow? Who knows that somebody didn't dream it? What proof is there? What proof, I say?"

"I saw them, Gran'pap."

In his deep distress and anxiety the words escaped from Dannie's lips involuntarily. His grandfather turned on him in an instant.

"You! You! An' where did you see 'em, I'd like to know?"

"Why—why, I saw a company of engineers go up the road the morning we went down to look at the stakes."

"Humph! So did I. D. V. & E. engineers. Begun where they left off the night before. That's as much as you know about it. Look here, Gabriel! I don't believe a word of your yarn. And if any engineer went over that route in the night an' says he didn't see the stakes set in the afternoon, he lies!"

“Oh, Gran’paw! No—no; he wouldn’t lie! He couldn’t lie! He didn’t lie! I know he didn’t lie!”

The charge of falsehood, unjust as it was, against his friend, the engineer, to whom he had been so mysteriously attracted, was more than Dannie could bear. But the old man galloped on roughshod.

“I say he does lie! Or else he sent a man on ahead to pull ’em all out before he set his own. Like as not he’s the biggest rascal the railroad company could hire!”

“Oh, Gran’paw! Oh, no, no!”

Every bitter, biting word flung from his grandfather’s lips cut Dannie to the heart. It was almost as though his own father was being insulted and assailed. It drew from him denial and protest as strong almost as the old man’s denunciation.

“You don’t know ’im!” he exclaimed. “You didn’t see ’im! He’s a gentleman. He wouldn’t do a mean thing to save ’is life! Why, Gran’paw, he’s the one who was big hearted enough to run around your graveyard.”

“Sure! sure! I forgot that. You’re right, Dannie. He’s a gentleman.”

With the remembrance of that gracious act the old man’s anger suddenly cooled. In the momentary silence that followed, Gabriel found another opportunity to take up the broken thread of his disclosure.

“Yes,” he went on, as unconcerned as though the subject had proved to be the most commonplace in the world to both his listeners, “as ol’ Isra’l Pidgin use to say, ‘Possession is ten p’intz o’ the law when it’s a railroad that’s got it.’ An’ them D. V. & E. fellers ain’t a-goin’ to let t’other company git the start of ’em on ary one o’ them ten p’intz.”

“What do you mean by that, Gabriel? Speak!”

The old man was getting excited again.

“W’y, David Brown says ’at they’re a-comin’ on next Monday mornin’ to begin buildin’ their railroad. To-day’s Saturday. David says that’s straight. He says the fust thing they’re a-goin’ to do is to cut a grade through the graveyard, an’ make sure o’ that ’fore you back out, or ’fore you law ’em out. David says ’at it’ll go about three foot deep through the knoll in the

middle, an' make a bank about three foot high to'rd the wall on the east. David says 'at fifty feet wide'll take in the monument an' half a dozen more graves an' gravestones, an' likely they'll rip 'em all out o' the way 'fore they've ben to work there two hours."

Gabriel had saved his heavy gun till the last, and now that he had fired it successfully, he leaned forward in his chair, placed his chin in his hands, and gazed into the wasting fire with a calmness born of joyful expectancy. But there was no response to his statement. Dannie was gazing in silent and dreadful apprehension at his grandfather, yet the anticipated outburst of passion from the old man's lips did not come. Instead, he walked slowly out into the kitchen, and reaching up to the west wall above the mantel, he took down from its hooks the old but trustworthy double-barrelled shot-gun that had served him for thirty years and more, and examined lock, trigger, breech, and muzzle as carefully as though he were about to defend his own life.

CHAPTER VI

When Abner Pickett took down his gun from its hooks that Saturday night, and examined it, he had already determined what he should do if any attempt were made to grade the bed for a railroad through his graveyard; and his determination was in no way changed as he thought over the situation in his calmer moments on Sunday.

Monday was the first day of October. The rain had washed the air and left it clear and invigorating. The autumn foliage was in the height of its beauty. It was a day in which to live out of doors and be thankful for life; a day in which to immerse one's self in the enjoyment of the riches of nature. But for Dannie Pickett there was no pleasure. He did not see the glorious coloring on the hills; he did not feel the exhilaration of the draughts of pure air that went into his lungs. He was too deeply absorbed in the consideration of the situation which his rash folly had brought about, to see or hear or feel anything else in his environment. If he had not removed that line of stakes, the second survey would not have been made; his grandfather would not have been deceived into selling, for a song, property rights worth many hundreds of dollars; the rival railroad companies would not have begun the battle for the gap, and, finally, the county jail would not have been staring him in the face, as it had been during the last four days and nights. For, as he saw and appreciated more and more the far-reaching and disastrous consequences of his unpardonable act, leading every day to deeper complications and graver troubles, he realized more and more deeply how serious his offence had been, he became more and more apprehensive of the punishment he would have to face if his crime should become known. He spent his days in misery and his nights in dread, starting at every footfall, losing his breath at every sudden sound, awaiting, with awful expectancy, the next development in the situation which had become, for him, a tragedy.

It was with welcome ears, therefore, that he heard his grandfather say that he need not go to school that Monday morning. He felt that he would

be stifled in the schoolroom, that he must be in the open air, that he must be on the ground ready for any emergency.

After breakfast the old man strapped on his powder-horn and pouch, took down his gun, loaded it, and invited Dannie to accompany him. Aunt Martha watched them from the kitchen window, as they went down the path, her eyes filled with tears and her breast with dreadful apprehension. But she knew that it was of as little use to attempt to turn Abner Pickett from a purpose once formed as it was to try to send the Delaware River flowing back northward in its bed. As Dannie and his grandfather walked down the road, they came upon Gabriel who stood watching the engineers at their work—the same engineers who had made their survey that fateful afternoon. They had relocated their line and replaced their stakes up through the gap and across the graveyard, and were now working between the road and the brook. Abner Pickett paid little heed to them as he passed by.

“Come along, you fool!” he said to Gabriel, and the three walked on down the road. When they reached the entrance to the graveyard they opened the gate and went in. A fresh stake had been planted on the knoll in the very spot from which Dannie had removed one on that eventful night. It caught Abner Pickett’s eye at once. He strode to it, tore it from its fastening in the soil, and, with a mighty sweep of his arm, sent it whirling into the brook. Dannie looked on in wide-eyed amazement, but he said not a word. While all three knew that the object of the visit to the graveyard was to prevent, if possible, the entry into the lot of the workmen who were expected that morning to begin the grading of the railroad, not one of them mentioned it. Abner Pickett was not in a mood to talk, and the others dared not speak of it. Even as they stood there, the contractor, with his foreman and his gang of laborers, came up through the glen in wagons, with their carts, mules, tools, and appliances for grading. Between the mouth of the gap and the east wall of the graveyard, they halted and began to unload their things, while the contractor and foreman made a hasty examination of the stakes that had already been marked for grade. Abner Pickett walked deliberately to the east wall and seated himself on it, his gun resting carelessly in his lap. Dannie and Gabriel followed him, and took similar positions at his side.

“We’ll have to begin in the graveyard,” said McDonough, the contractor, “and cut down that knoll and carry it east here for this fill.”

“Then the first thing to do,” replied the foreman, “is to tear away that wall, about where them fellows are sitting on it.”

“Exactly. There’s where the line is. Bring your men up and let ’em go at it. Come, gentlemen, you’ll have to vacate your seats up there; we want those stones you’re sitting on.”

This last remark was addressed to Abner Pickett and the man and boy who kept him company.

“I’m quite comfortable here,” replied the old man; “I don’t think I shall move for the present. Besides, these stones belong to me; an’ so does the graveyard an’ the graves, and I don’t intend you shall touch any of ’em.”

McDonough looked up at him in unfeigned surprise.

“Are you Abner Pickett?” he asked.

“That’s my name.”

“I don’t understand what you mean by this conduct, Mr. Pickett. I have your agreement of sale here, conveying a right of way through the graveyard to this company. It was duly signed, sealed, and delivered. I don’t know that you have any right whatever to interfere with us now.”

“There are several things about this business that I reckon you don’t know,” replied the old man. “For instance, you don’t know that that agreement was got from me by deception and fraud, and ain’t worth the paper it’s written on. I repeat that I intend to hold possession of this lot.”

McDonough continued to protest.

“I cannot help any misunderstanding between you and the company, Mr. Pickett. If they’ve done you any damage, they’re good for it. I’ve taken this section to grade, and I’ve got to begin there in that graveyard; so you might as well clear the way for us. We intend to proceed.”

“And I intend you shan’t.”

The old man laid his hand significantly on the barrel of his gun as he spoke.

“Do you mean to say you would shoot?”

“Ay! an’ kill to save this holy place from desecration.”

“Don’t you know I could have you arrested for threats? Don’t you know what the penalty is for murder?”

“Keep your distance and there’ll be no murder. Come ten foot closer an’ there’ll be blood spilt just as sure as the sun shines above you.”

The red flush had mounted again into Abner Pickett’s face and neck. He raised his gun from his lap, and held it threateningly in his hands. Dannie, frightened at the tragic outlook, moved closer to his grandfather, but held his tongue. He knew that it would be worse than useless for him to speak. The contractor, too, had his blood up. He was not easily cowed. His experience in railroad building had been too extended to permit him to yield readily to an obstacle of this kind. He turned aside to consult with his foreman. Nicholson, the engineer, observing the situation from a distance, hurried back with his men. The laborers had already congregated about their employer. [Abner Pickett](#), with grim determination stamped upon every line of his face and every muscle of his body, still [sat upon the wall holding his gun in readiness for action](#). Dannie, white faced and fearful, but with never a thought of desertion, sat beside his grandfather, while Gabriel, standing near by, gripped two cobblestones tightly in his hands.



[“Abner Pickett sat upon the wall, holding his gun in readiness for action.”](#)

The consultation between Nicholson and McDonough was short but animated, and the decision reached was evidently concurred in by the foreman and his men. McDonough advanced a step and said:—

“Mr. Pickett, we intend to enforce our right to take possession of that lot and begin our work. If you interfere with us, you will be responsible for the consequences.”

To all of which Abner Pickett made no reply. He simply held his gun with a firmer grasp, and the lines of determination about his mouth grew more noticeably distinct.

After waiting a moment in vain for an answer the opposing forces held another brief consultation to decide upon the best plan of action. Then they

divided into three groups led respectively by Nicholson, McDonough, and the foreman. It was evident that they intended to storm the graveyard from three sides. But, before they could move to their respective positions, a two-horse buggy, containing two men, dashed down the road and drew up at the corner of the graveyard. One of the men leaped from the wagon and approached McDonough.

“Are you the contractor having in charge the grading of this section of the Delaware Valley and Eastern Railroad?” he inquired.

“That’s what I’m here for,” responded McDonough, “though I don’t seem to be getting to work very fast.”

The man turned to Nicholson.

“And are you the engineer having in charge the fixing of permanent location and grades?”

“That’s about it,” replied Nicholson.

“Then, gentlemen, permit me to introduce myself to you as the sheriff of Meredith County, and to serve on each of you this writ.”

He bowed and handed to each of them a document bearing an official seal.

“It is a writ of injunction,” he continued, “from the court of Meredith County, issued at the instance of the Tidewater and Western Railroad Company, commanding and enjoining the Delaware and Eastern Railroad Company, its agents, employees, contractors, and engineers, and all and every of you, that you do from henceforth altogether absolutely desist from locating, staking out, grading, or building a line of railroad through Pickett’s Gap in said county, or along or upon the approaches thereto; which gap and approaches have been duly appropriated, condemned, and acquired for railroad purposes by the said Tidewater and Western Railroad Company.”

The sheriff rolled out the words of the injunction with solemn and imposing voice and manner, then he folded his own copy of the writ and returned it to his pocket.

“I believe I have performed my duty, gentlemen,” he said politely, “and I wish you both a very good day!”

Then he went up to where Abner Pickett was still seated on the wall and shook the old man's hand with hearty vigor. He had taken in the situation at a glance.

"Don't blame you one bit, Mr. Pickett," he said. "I'd 'a' done the same thing in your place."

"Thank you," responded the old man, quietly, "I'm simply doing my duty by the dead."

When the writs of injunction were handed to McDonough and Nicholson, they stared at each other blankly for a moment; then the contractor, who had been through similar experiences before, remarked quietly that it looked as if the game was up.

"I don't mind a little thing like an old man with a gun," he said to Nicholson, when the sheriff had finished reading the injunction, "but when I run up against a writ like this, I'm through so long as the writ is in force. I undertook to disobey one once up on the Susquehanna road, and it cost me fifteen hundred dollars before I got through with the job. We learn by experience."

Nicholson was thoroughly annoyed and upset. He did not understand why the service of a paper like that, on a contractor and engineer, should have the effect of blocking a railroad; and he said so in no very polite language. McDonough smiled, and began to give orders to his men about loading up the tools again.

"I don't propose to get into a controversy with the court," he said; "we might as well take our things back to the river. Judging from past experiences we won't be able to resume work here before snow flies, anyway."

He started back toward the mouth of the gap. The sheriff, having just entered his wagon and turned his horses' noses westward, bowed politely as the contractor passed.

Nicholson was still standing where the sheriff found him, studying angrily the contents of the writ. After a minute or two, he folded the paper savagely, thrust it into his pocket, and started back up the road.

When Gabriel, who had stood for fifteen minutes in complete readiness to do his employer's will, saw the backs of their enemies turned to them and in retreat, he could not repress some outward manifestation of his inward exultation; whereupon he drew his faithful horn from his pocket, and blew on it a blast that sent the echoes tumbling through the glen.

"Put up that fool's plaything!" commanded the old man.

Ten minutes later Dannie and his grandfather walked back up the road with far lighter hearts than when they came down. The graveyard had been saved, at least for the present, from despoliation, and Abner Pickett felt confident that through the medium of the law and its peaceful operation, he could defeat any future plans of aggression by the railroad companies. But, after the stirring events of the first day of October, there was no attempt on the part of either company to begin the construction of a railroad, or to take possession of any property along the line of survey. All parties were quietly awaiting the determination of the equity suit begun by the injunction proceedings. And that suit could not come on for trial before the December term of court.

But for Dannie the situation remained practically as complicated and as harassing as ever. The service of the injunction and the frustration of the attempt to tear up the soil of the graveyard had given him only temporary relief. The main issue was yet to be determined; and his responsibility for the whole dreadful state of things, and his daily liability to be called to account for his unaccountable conduct, rested an ever increasing burden on his mind. It was with him daytime and night-time. Never, not even for a moment, could he shake it off. Many a night he awoke from some dreadful dream of incarceration in the county jail, or, still worse, of fierce denunciation from his grandfather, or, bitterest of all, of sorrowing reproof from the engineer who had been his companion on the night walk up the glen. Many a night, in his wakeful hours, he determined that when morning broke he would go to his grandfather, to Aunt Martha, to the engineer, to somebody, and make a clean breast of the whole wretched business. But when day dawned, and people were about their usual avocations, and things wore such a different complexion, his resolution always failed him, and the secret remained still in his breast. He plied himself constantly, too, with good reasons and excuses for keeping it. If his conduct should become known, then there would be no further question about the prior right of the

D. V. & E. company to the location through the gap. Nicholson would be triumphant. His friend, the engineer of the night survey, would be made the subject of jest and ridicule. His grandfather would most likely be held to his agreement to sell a right of way through the graveyard, and sooner or later the soil of that sacred place would be torn and trampled with the ploughs and picks and spades of a score of swarthy and unfeeling workmen. And then, after it was known, to meet the looks and words of those who had known and loved him,—Gran'pap, Aunt Martha, the engineer, Gabriel, even Max, the dog. That would be terrible. And always, as he pondered, there was before him, sharply or dimly, a vision of the gray and forbidding front of the county jail with its stone-paved corridor and its iron-barred cells. It cannot be denied that personal fear was a prime factor in his mind. He was but human and a boy.

Yet his conscience urged him always to confess. There was one phase of the situation, indeed, against which his conscience constantly rebelled. The D. V. & E. people were not now claiming the last line of stakes as their own, but they were alleging, by inference, if not directly, that the stakes set by Nicholson were removed in the night by the engineer of the T. & W. before he replaced them with his own. To meet this charge there was only the declaration of the members of the corps that made the night survey that there were no stakes in the gap when they went through. And against their contention was the impossibility of explaining in any other way how the evidences of Nicholson's work could have so completely vanished between six o'clock and midnight of the same evening.

It cut Dannie to the heart to hear this charge made and reiterated against the man who, in the short space of an hour, in the gray of one morning, had taken so powerful a hold upon his fancy, his boyish admiration, his heart-deep affection. Try as he would he could not rid himself of the vision of those clear blue eyes looking him through in sorrowful reproof. And yet—and yet he could not bring himself to an acknowledgment of his fault. Oh, those were wretched, dreadful autumn days.

Now and again Aunt Martha tried to comfort him. She saw plainly enough that something was preying on his mind, and in her gentle, unobtrusive way she gave him opportunity to confide in her, but thus far she had not been gratified by the first whisper of his trouble.

Abner Pickett, too, saw that the boy was suffering, but he imagined that it was from some physical disorder; and one day, when Dr. Chubbuck was driving by, he insisted that Dannie should submit to an examination by this old and trusted physician. The doctor, being unable to make a diagnosis of any physical trouble, left a prescription for some simple tonic, and promised to call again when he passed that way.

So the autumn days went by and winter came. It came early and promised to be severe. Snow fell before Thanksgiving, and by the first of December sleighing was general throughout the country.

The trial of the equity suit was set down for the second Monday of December, and many witnesses had been subpœnaed from the vicinity of Pickett's Gap. Early on Monday morning they had started, two loads of them, including Abner Pickett and Gabriel, for Mooreville, the county-seat. Dannie had not been subpœnaed. He smiled grimly as he saw the others depart, and thought how much more he could do toward clearing up the situation than the entire dozen who had been called. It was a lonely day for him after they were gone, a dull, cold day, with occasional flakes of snow in the air, and he was glad when night came, and the chores were all done, and the supper ended, and he and Aunt Martha could watch the blaze of logs in the sitting-room fireplace for the usual half hour before retiring. It was a quiet half hour this night, for neither of them seemed to be in the mood for conversation. And yet Dannie's mind was in a tumult. The departure of the witnesses, the nearness of the trial, the impossibility of his knowing what would occur at Mooreville, the increasing dread that for lack of testimony which he alone could give, some terrible injustice would be done; these things, weighing on his mind with accumulating power, forced him into a state of nervous apprehension and distress more painful than any physical hurt from which he had ever suffered.

Aunt Martha saw that he was laboring under intense excitement or was stirred by some deep emotion. She knew that it was not wise to question him, but gently and soothingly she placed her hand on his forehead and began to smooth back his hair. Somehow she felt that the crisis which had been impending for many weeks had at last been reached.

And it had. Lashes on his bare back would never have drawn a confession from this boy. Neither commands nor threats would ever have

induced him to give up his secret against his will. Yet the influence of this quiet hour, this mellow firelight, the soothing presence of this gentle woman who had always been to him so loving, so loyal, so truly motherlike, began to draw with irresistible force from his heart to his lips the whole story of his offence and his suffering. At last, unable to repress his emotion, he dropped to the floor at the good woman's feet and buried his head in her lap.

"Oh, Aunt Martha!" he cried, "I can't keep it to myself any longer; I can't! I can't! it'll kill me!"

Still smoothing back his hair she laid a loving hand across his shoulder.

"Tell me, dearie, tell me what it is. I know I can help you."

Thus encouraged he poured out to her the whole miserable story, all of it; without reservation or excuse, or any attempt to blame others or to shield himself.

"What shall I do, Aunt Martha?" he wailed at last. "What shall I do? Oh! what shall I do?"



“What shall I do, Aunt Martha?”

With her handkerchief she was alternately wiping the perspiration from his forehead and the tears from her own eyes.

“There’s but one thing to do, Dannie. Go to those who have been harmed or prejudiced by what you have done and tell them everything—everything.”

“And the punishment?”

“Take it like a man, whatever it may be. But they will not punish you cruelly; have no fear of that.”

“And then, when it’s known and settled that the D. V. & E. was first in the gap, they’ll build their railroad; they’ll cut a way through the graveyard, and we can’t stop ’em.”

“Don’t try to foresee the evil that may spring from doing what is right. Your duty is to act in the present. God will look out for the future.”

In this wise she counseled him, aided him, soothed him, until at the last, he rose to his feet resolved, no matter what the consequences to himself, to tell the whole story to all those who ought to know it.

“To-morrow morning,” he said, “I will go to Mooreville. I will get there before court opens, and if the case was not decided to-day— Oh, Aunt Martha! suppose they are through with it; suppose it’s all over, and some one else is suffering for what I did! I must go to-night. I must go at once. I mustn’t wait a moment.”

“No, dearie, no. It will be time enough to-morrow morning for you to start. You could accomplish nothing to-night even if you could get there. Go to bed, now, and try to sleep. You will be stronger in the morning.”

He yielded at once to her wish. And, notwithstanding the dread task before him on the morrow, he lay down with a lighter heart than he had known for many weeks, and slept more sweetly and soundly than he had slept before since the night of the survey.

Very early the next morning he shaded his eyes with his hand and looked from his window into the darkness outside, and saw that it was snowing. Aunt Martha compelled him, much against his inclination, to eat a hearty breakfast and to bundle himself well against the storm. When, at last, they heard the muffled jingling of the bells that announced the approach of the Mooreville stage, she put her arms around the boy’s neck and kissed him.

“Keep up courage, Dannie,” she said cheerily. “It won’t be hard when you get there. You’ve done the hardest part of it already.”

“I’m not afraid any more, Aunt Martha,” he replied. “Nothing on earth can keep me from doing what I ought to, the way I feel about it now. I only hope and pray that I won’t be too late. There’s the stage at the gate. Good-by!”

“Good-by, Dannie! God bless you and comfort you!”

He went down the path by the light of the lamp held in the kitchen doorway, knocking aside the loose snow as he walked. At the invitation of the stage driver he climbed up to the front seat with him, and started on his fifteen-mile journey to Mooreville, the county-seat. It was still very dark, and the snow was falling steadily, though it was not yet so deep but that the horses could trot along at their usual monotonous gait until they reached the foot of the long hill that leads to Oak Ridge. Here the driver stopped to extinguish the light in his lantern, for it was now daybreak. But, with the coming of day, the snow fell faster, the wind arose, and long before the stage and its occupants had reached the summit of Oak Ridge the horses were plunging now and again through drifts that reached to their knees. At High Rock post-office they stopped for ten minutes to receive and deliver mail. From there to Lawrence's the road was mostly through the woods and was not badly drifted. Then came the two-mile drive down the northwest face of the hill range to the poor-house. It was a tedious, toilsome, terrible journey. They were obliged to break down fences and go through fields to avoid deep drifts in the roadway. Many a time it seemed as though the horses, exhausted by their efforts, would never be able to break through the huge banks of snow that enveloped them. And constantly, driving into their faces, blinding their eyes, chilling them to the bone, the storm beat down upon the travellers. When, at last, they drove up to the poor-house gate, the stage driver gave a great sigh of relief.

"Them horses don't go no further to-day," he declared.

"But," exclaimed Dannie, while his teeth chattered with the cold, "I've got to get to Mooreville, you know. I've simply got to get there."

He felt that he could not afford to entertain for a moment the idea of delay.

"Well," was the response, "if you've got to go, you an' me can try to foot it for the next stretch; mebbe we can get along, but them horses has got to stay here. I can't afford to lose 'em jest yet."

He unhitched the team and drove it into shelter. Then, in spite of protests from the occupants of the house, he and Dannie started out to face the storm on foot; the one with the mail-bag flung over his shoulder, the other bearing no burden save the ever present, ever growing fear that he would reach Mooreville too late to fully accomplish his still resolute and unyielding

purpose. Had it not been a self-imposed task, it would have been a cruel one for either man or boy.

Hour by hour the storm grew fiercer, the drifts deeper, the journey more desperate. Now and again the travellers dragged themselves along by the rails of the roadside fences, and many a time they searched in vain for well-known landmarks to guide them on their way. There was but one relieving feature in the situation,—it was not severely cold. Had it been, both man and boy would surely have perished.

When they reached Keene's, the stage driver gave up the task.

"I won't go no further," he declared, "Uncle Sam or no Uncle Sam. Me an' this mail-bag stays here till it's fit for man an' beast to be out. Come on into the house."

Dannie followed him in.

"I'll go in for a few minutes an' get warm," he said, "then I'll push ahead. Oh! it's no use," as the driver began to protest, "I've got to get there, whether or no. It's only four miles farther, an' there are plenty of houses on the way."

When old Ezra Keene heard that Dannie intended to continue the journey to Mooreville, he shook his head vigorously.

"Can't be done," he said. "Never see sech a storm sence I've been here, an' that's nigh on to forty year."

Still Dannie insisted.

"I've got to go," he said. "I've got to get there. If I don't get there, something terrible may happen."

"An' ef ye start out in this storm, suthin' turrible's sure to happen—so there ye air."

The old man smiled, hobbled to the window and looked out. He came back to the stove, shaking his head more vigorously than before. But Dannie was already buttoning up his great-coat, and pulling his cap down over his ears. Then the stage driver, who had been crouching over the fire, arose and added his protest in no delicate or uncertain terms.

“No one but a born fool,” he concluded, “would think of undertaking sech a thing. Fer Heaven’s sake be decent an’ sensible, an’ stay where you’re well off.”

But Dannie was not to be deterred nor swayed from his purpose. Neither abuse nor ridicule nor the power of the storm was sufficient to alter his determination to do all that lay in his power to right the wrong he felt he had committed, before it should be forever too late.

He opened the farmhouse door and started out into the tempest. The stage driver rammed his hands deep into his trousers pockets and turned away in disgust at what appeared to him to be the inexcusable foolhardiness of the boy. Old Ezra Keene, looking from a window, saw the lad struggle through a huge drift at the roadside, and then disappear in a whirling cloud of snow. He threw up his hands and dropped his head, as much as to say that it was all over, and came back and sat down by the stove.

Ten minutes later the stage driver, unable to repress his grim forebodings and the natural impulse of his kind heart, yet with words of anger on his lips, flung himself into his great-coat, cap, and mittens, and started out to drag the boy back from what seemed certain death. A farmhand from Keene’s accompanied him, and, together, they faced the storm and buffeted the drifts for hours without success. At dusk, they returned to the house, and reported that they had found no trace, whatever, of the missing lad.

CHAPTER VII

The celebrated equity case of the Tidewater and Western Railroad Company vs. the Delaware Valley and Eastern Railroad Company came on to be heard at Mooreville on the second Monday of December term. The question at issue was the priority of right to build a railroad through Pickett's Gap. When court convened at two o'clock, the court room was crowded. The case had aroused great public interest and curiosity. Besides the local counsel engaged, there were eminent lawyers in attendance from New York and Philadelphia. There was bound to be some nice legal sparring, and people wanted to see and hear it. The battle began soon after the case was opened, when the Tidewater and Western offered in evidence their paper title to the route acquired by them from the old Lackawanna Company. The D. V. & E. people had not expected this, and it provoked a prolonged contest between counsel. Indeed, the better part of the afternoon was occupied in the effort to get this title in evidence. When it was finally admitted another struggle was immediately precipitated by the offer of the minutes of the meeting of the board of T. & W. directors, at which the route through Pickett's Gap was formally adopted. And when this contention was settled in favor of the T. & W. it was time for adjournment.

Just enough evidence had been taken to whet the appetite of the public for more. And when court was opened at nine o'clock on the following morning the court room was again crowded, notwithstanding the fierce snow-storm that was raging outside. Pickett, the T. & W. engineer, and his assistants were put on the stand to identify the map of the route and to testify regarding the right location through Pickett's Gap. There was very little cross-examination. The defence were evidently saving their ammunition. Then the plaintiff rested, and the D. V. & E. took up their side of the case. Their charter was admitted without objection; but over the testimony showing the adoption, by the board, of the Pickett's Gap route, there was a lively tilt. Indeed, it appeared from the evidence in the case that the directors of both companies had held their meetings on the same day, and at practically the same hour, for the purpose of receiving the report of

the engineer and adopting the route recommended by him. There was also a long contest over the admission of the route-map and profile, and when these were finally admitted the court adjourned for the noon recess. The wind was playing wildly with the driving snow, and across the paths through the court-house square great drifts had already formed. Lawyers, witnesses, and spectators set their faces against the storm, pulled the collars of their great-coats up about their ears, and struggled to their hotels and homes. At two o'clock they all struggled back again through the still driving, drifting snow. Indeed, the crowd was even greater than at the morning session. Nicholson, the D. V. & E. engineer, and every member of his corps were called on the stand to testify to the setting of the stakes, through Pickett's Gap, on the afternoon of September twenty-seventh. No amount or severity of cross-examination could shake the testimony of any of them on that point. Nor could any of them explain why the stakes were not still in position (if they were not) when Pickett made his survey some six or eight hours later. Nicholson declared, however, in answer to a question on direct examination, that the surreptitious removal of the stakes would benefit no one unless it might be the T. & W. Railroad Company. But this objectionable answer was, on motion of counsel for the T. & W., stricken from the record. Templeton, the Philadelphia lawyer, took up the cross-examination.

"It appears," he said to Nicholson, "from this map which I have before me, that you located your route directly through the Pickett graveyard. Is that true?"

"It is."

"And in making your relocation did you again pass through the graveyard?"

"We did."

"Is there any other practicable route by which to reach the entrance to the gap except the one occupied by the Tidewater and Western running to the south side of the brook?"

"There is no other."

"If then it should turn out that your company has no legal right to occupy this graveyard as a site for a railroad, you would find it difficult to effect an

entrance to the gap from the west?”

“Yes, sir, practically impossible.”

“And did you not know, when you projected your line across that graveyard, that your company, by virtue of the laws of Pennsylvania, had no right to occupy it with a railroad?”

“I knew that we had no right without the consent of the owner. That consent, however, has been obtained.”

“In what way?”

“By fraud!”

It was not the witness who made this answer; it was Abner Pickett. Seated on the front row of benches, within easy distance of the witness stand, he had absorbed the testimony with intense interest, holding himself in check with remarkable self-restraint until Templeton’s question gave him an opportunity for a verbal shot which he had not the power to repress. Every eye in the court room was turned on him, but he cared little for that. A tipstaff came up and warned him not to repeat the offence, and then the examination of witnesses was resumed.

And so Abner Pickett sat, that morning, and looked upon and listened to his own son, Dannie’s father, as he gave his testimony on the witness stand. Handsome, manly, frank in all his answers, the impression created by Charlie Pickett, both in the mind of the court and in the minds of the spectators, was a most favorable one. Long before he had finished there was not an unprejudiced person in the court room who was willing to believe, for a moment, the insinuation made by Nicholson that the D. V. & E. stakes had been removed under Pickett’s direction for the benefit of the T. & W. And when, on cross-examination, he was pressed to give his reason for going around instead of across the Pickett graveyard, he was content to reply simply that he understood that the right of eminent domain, conferred by the commonwealth of Pennsylvania upon railroad corporations, did not include the right to occupy burial-places. And Abner Pickett, who knew of his son’s far deeper reason for not crossing the graveyard, listened with bowed head, appreciating to the full the delicacy which so skilfully avoided the thrusting of personal and family sentiments and secrets before the court and the public. It was the first time in thirteen years that he had looked upon

Charlie's face. He could not help but observe how mature and manly the boy had grown; he could not help but admire his stalwart figure, his handsome countenance, his graceful bearing. He could not wholly repress the feeling of pride that would swell up in his heart as he looked upon this splendid specimen of young manhood, and listened to his answers, given with a quickness and rare intelligence not often found in the court room. "This is your boy," something in his breast kept repeating to him; "this is your boy; this is *your* boy."

And yet—and yet, for two days he sat with him in the same room, brushed past him in the corridor, could have reached out his arm at almost any moment and touched him, looked straight again and again into his appealing and eloquent eyes, and never gave the first sign or hint that he desired a reconciliation. Strange how stubbornness and obstinacy and the unforgiving spirit will rule the natures and thwart the happiness of men.

Gabriel was called to the witness stand to testify to having seen Nicholson and his men set their stakes from the mouth of the gap westerly on the afternoon of September twenty-seventh.

"Yes," he replied, in answer to the lawyer's question. "I seen 'em. They come straight from the gap acrost the graveyard an' up into the potater field where I was workin'."

"Saw them set their stakes, did you?"

"Ev'ry one of 'em; 'specially the one they hammered into the middle of the graveyard."

"Did you see any stakes in the gap that day?"

"Not a stake. Wasn't through the gap till the next mornin'. Then they was a plenty of 'em there; but not a sign of a stake in the graveyard. Wa'n't that kind o' queer?"

"Very. Now, then, did you see any one remove any of those stakes?"

"Not a person."

"Did you remove any of them yourself?"

"No, siree!"

"Was any one with you in the potato field when the engineers came up?"

“Yes; Dannie.”

“Dannie who?”

“Dannie Pickett; Abner Pickett’s gran’son.”

“Is he in court?”

“I reckon he ain’t. He didn’t come yisterday; an’ I sh’d say he’d find it perty tough sleddin’ to git here to-day.”

“Now, then, did you or Dannie Pickett threaten those engineers with any harm?”

“Well, I reckon I told ’em it wouldn’t be healthy fer ’em ef Abner Pickett was on deck; an’ Dannie, he ’lowed ’at they wouldn’t no railroad run through *his* gran’pap’s graveyard; ho! ho! ho!”

The recollection of the circumstance seemed to amuse Gabriel very much.

“Funny, was it?” asked the lawyer.

“Funny ain’t no name fer it,” replied Gabriel.

Then the lawyer—Marshall of New York—put on an air of severity.

“Now, sir, did you hear any one, at any time, threaten to destroy or remove the stakes set by the Delaware Valley & Eastern engineers?”

Gabriel waited a moment before answering. He was evidently pondering the matter deeply.

“W’y, I can’t say adzackly,” he replied slowly, “as I heard anybody threaten to pull up them stakes. No, I can’t say adzackly as I did.”

“Well, what threats did you hear concerning those stakes?”

“W’y, I didn’t hear nobody threaten to pull ’em out, er hammer ’em in, er chop ’em down, er burn ’em up. No, sir, I didn’t.”

Gabriel looked beamingly down on the array of counsel, feeling that he had covered the ground that time, at any rate. He did not know that he had simply whetted the lawyer’s appetite for information.

“Come, now, answer the question. You heard threats, what were they?”

“W’y, I can’t adzackly say as I heard any threats.”

Marshall, the lawyer, was becoming annoyed. He rose to his feet and shook his forefinger angrily at Gabriel.

“You know more about this matter than you are willing to reveal,” he shouted. “Now, sir, I want you to tell this court what you know and all you know about the removal or threatened removal of those stakes!”

Gabriel looked smilingly down upon him.

“Well,” he replied slowly, “ez ol’ Isra’l Pidgin use to say, ‘Ef ye don’t know a thing, better let somebody else tell it.’ Thuffore I’d a leetle ruther somebody else’d tell it.”

“And who is Israel Pidgin?”

“Oh, an ol’ feller I use to know up in York State.”

“Confine yourself to Pennsylvania and answer my question. I shall try to make it simple and direct. Did you, at any time, hear any person make a threat to remove those stakes, or express a wish to have them removed? Yes or no.”

This question was getting dangerously close to Abner Pickett. Gabriel recalled, with startling distinctness, that night on his employer’s porch, when the old man declared with such terrible emphasis that no person could do a better deed than to pull out all the stakes and throw them into the brook. And there was Abner Pickett now, sitting on the front bench, head and shoulders above the crowd, piercing him through with those clear blue eyes. He was in a quandary. He hesitated long before replying.

“Well,” he said, at last, “I can’t say that I heard anybody say adzackly that; no, I can’t.”

The lawyer followed up his clew mercilessly.

“Did you hear any one, at any time, say that it would be right and proper to remove or destroy those stakes?”

Before Gabriel could answer, Templeton, the opposing lawyer, was on his feet.

“Counsel forgets,” he declared, “that this is his own witness whom he appears to be cross-examining. I demand the enforcement of the rule and the protection of the witness.”

Judge Moore removed his glasses and poised them between his thumb and forefinger.

“The witness appears to be unfriendly and evasive,” he declared. “We think counsel is within his rights in pressing the question. Proceed.”

The incident gave Gabriel time for thought; but if he had had a year in which to think it out, he could not have framed a successfully evasive answer to the question. And it added not a little to his discomfiture that Abner Pickett’s eyes were still piercing him like arrows of fire.

“Well,” said Marshall, impatiently, “answer the question. We can’t wait all day.”

“W’y,” stammered Gabriel, “I—well I—”

“Tell the truth, you fool!”



[“Tell the truth, you fool!”](#)

It was Abner Pickett who spoke that time, standing his full six feet two and pointing his long forefinger at the disconcerted witness. Again every eye in the court room was turned on the speaker. His arm was grasped roughly by a tipstaff, who hurried to his side.

“Don’t remove him,” said Marshall. “I shall want him on the stand in a moment.”

“The sooner, the better,” replied the old man, shaking off the grasp of the officer and dropping into his seat.

Marshall turned to the witness.

“Answer my question,” he demanded sharply, “yes or no.”

“Yes,” replied Gabriel.

“Who said so?”

“Abner Pickett.”

“When?”

“The same night the stakes was set.”

“What did he say?”

“He said nobody could do a better thing than to pull ’em all up an’ throw ’em into the crick.”

“That will do. Abner Pickett take the witness stand.”

Things were moving rapidly now. Before Gabriel fairly knew it he was down out of the witness box, and his employer had taken his place and been duly sworn.

“Are you the Abner Pickett of whom the last witness spoke?” was the first question asked him; and the answer came with a promptness that was startling.

“The same man exactly.”

“And is it true that you declared that a person could do no better deed than to remove the stakes set by the D. V. & E. engineers?”

“True as Gospel.”

People in the court room craned their necks and listened intently. This witness promised to be interesting, to say the least.

Back near the main entrance to the court room there was some noise and confusion. A door had opened and a boy had stumbled in. Numb and stiff and faint with cold and fatigue he had tripped awkwardly over a constable’s staff and had fallen to the floor. People in that part of the room turned in their seats to see what the noise was about, and those near by looked curiously at the prostrate boy. He was helped to his feet by the constable, duly admonished, and given a seat on the last row of benches but one. It was Dannie Pickett. How he had managed to force his way, in the teeth of that terrible storm, through the great drifts that blocked the country roads, down into the deserted streets of the town, and thence to the county courthouse, no one was ever afterward quite able to make out, nor was he himself ever able fully to explain. It was one of those feats of physical endurance made possible only by the splendid power of determination, and

even then fairly striking across the border line of the naturally possible into the realm of the miraculous and the providential.

As Dannie breathed the warm air of the court room, he began to regain his strength, and, save the aching in his limbs, and the pricking sensations over his entire body, he suffered no pain. When the mist had cleared away from before his eyes, he saw that his grandfather, whom he had intended to search out, and to whom he had resolved to make his confession immediately on his arrival, was sitting up in the witness stand, undergoing examination. And down to his ears, through the intense quiet of the court room, came the lawyer's question:—

“Don't you know that the law of Pennsylvania makes it a crime, punishable by fine and imprisonment, to remove stakes set by a surveyor or engineer?”

Abner Pickett glared at his questioner.

“I ain't here,” he replied, “to tell you what I know or don't know about the laws o' Pennsylvania. If you've got any questions to ask about the facts, ask 'em and I'll answer to the best o' my ability.”

Consciously or unconsciously he had placed himself within the rules of evidence and the protection of the law. Marshall saw that he had lost a point, and he started out on a new tack.

“Very well, Mr. Pickett. We will get down to facts. Where was this celebrated declaration of yours, as testified to by the preceding witness—where was it made?”

“On my side porch, in the evenin' of September twenty-seventh; the evenin' o' the day the stakes were put in.”

“Very good; who were present and heard it?”

“Well, David Brown was there for one. No, he wasn't, either. He'd gone home. There wasn't anybody there except my grandson, Dannie, and that fool that was just on the witness stand.”

“Gabriel?”

“Yes, Gabriel.”

“Where did he go then?”

“He went to bed.”

“Where did you go?”

“I went to bed.”

“And the boy?”

“Why, we all went to bed. It was after ten o’clock. Do you s’pose we sit up all night down at the gap?”

“Really, I didn’t know, Mr. Pickett, without inquiring.”

The witness was losing his temper, the lawyer was getting sarcastic, and the spectators were anticipating a still greater treat in store from the continuance of the examination.

In his seat at the rear of the court room Dannie sat, dazed, motionless, listening and hearing as one in a dream; in his breast still the imperious demand of his conscience urging him to confess; in his palsied limbs no power to move. Then Marshall took up a new line of examination. He handed a paper to the witness directing his attention to the name at the bottom of it.

“Is that your signature, Mr. Pickett?” he asked.

The old man looked at the paper carefully.

“Yes,” he replied, “it is. I wrote it myself.”

“This paper is an agreement to sell to the Delaware Valley and Eastern Railroad Company a right of way fifty feet in width, through your property, on the line located by their engineers on September twenty-seventh last. You signed that paper voluntarily, without any coercion, naming your own price for the property?”

“Let me tell you about that paper, young man.”

“No; answer my question, yes or no.”

“Then I say, yes. A hundred times, yes. I was neither bullied nor bought; but I was deceived and defrauded. When I signed that paper the only line of stakes I knew anything about was the line that went across the brook and around the graveyard. I supposed that was the route I was sellin’. I said so to the man who brought the paper. He didn’t undeceive me. To all intents

and purposes he lied to me, and his corporation has attempted to rob me. Do you think, sir," demanded the old man, rising from his chair, with the crimson spreading over his neck and face, and pointing his long forefinger at the lawyer, "do you think I would sell to any person or to any company, for any money in this world, the right to desecrate the graves of my dead; the right to disturb bodies that were so dear to me in life, that I would have given all I possessed to save them from the slightest hurt? Do you? I say, do you?"

Marshall was getting more than he had bargained for; but he was too good a lawyer to permit himself to lose his grip.

"Be seated, Mr. Pickett," he said firmly, "and keep cool. Now, don't you know that, regardless of your agreement to sell the right of way, a railroad company has a right, under the laws of this state, on complying with certain conditions, to build its railroad on any land belonging to any person?"

The old man dropped back into his chair.

"No," he replied, "I don't. I ain't a lawyer; but I don't believe that's the law. They say law's founded on justice, and it ain't just, and it ain't human for any one to have the right to disturb my dead in their graves against my will. God's Acre in this land and in this age is his holy of holies. He sends his rain an' dew an' frost to fall more gently on the homes o' the dead than on the homes o' the livin'; and it's the duty, and ought to be the joy of any man to protect that sacred place from desecration."

Through the hush that had fallen on the great crowd in the room, the old man's voice rang pathetically clear. On the faces of the spectators there were no longer any smiles. The whole atmosphere of the court room had changed to one of solemn earnestness. Even the examining lawyer saw that it would not be fitting nor profitable to follow out that line of questioning. When he again spoke it was in a quieter voice, and on another branch of the subject.

"Mr. Pickett," he said, "when did you first see this line of stakes?"

"Not till the next mornin' after they were set."

"Did you follow the line?"

"I did."

“Did it run through your graveyard at that time?”

“No, sir, it went across the brook and around the graveyard, in as handsome a curve as you ever saw.”

Charlie Pickett, sitting back among the spectators, his heart throbbing with pity and pride as the old man’s examination progressed, heard this last answer and flushed to his finger-tips.

“Were there no stakes in the graveyard?”

“Not one. I saw the place, though, where one had been set and pulled out. I pulled another out of the same place myself four days later and flung it into the brook.”

Marshall paid little heed to this last answer, although it was in the nature of a direct challenge. A new thought appeared to have struck him. He gazed at the ceiling contemplatively for a full minute before proceeding with his examination.

“By the way,” he said, “how early in the morning was it that you saw this line of stakes?”

“Just about sunrise.”

“Where had you come from?”

“From the house.”

“Had you been long up?”

“Just got up.”

“Did you go alone to look at the line?”

“Yes—no; my grandson, Dannie, went with me.”

“Where did you first see him that morning?”

“There at the house.”

“Indoors or outside?”

“Why, I believe he was comin’ up the path.”

“Had he been long out of bed?”

“That I don’t know.”

“Do you know where he had been when you first saw him coming up the path?”

The old man waited a moment before answering. Some vague apprehension of trouble about to fall upon Dannie seemed to be taking possession of his mind.

“Why, no,” he replied slowly, “I can’t just say where he had been.”

“Was this the same boy that heard you make that declaration concerning the stakes the night before?”

“Yes—why, yes—the same boy. Yes—the same boy.”

He spoke as if he were dazed. His voice dropped almost to a whisper. He gazed out over the heads of the people in the court room with eyes that were looking into the past. He saw Dannie as he appeared that morning—his weariness, his exhaustion, his nervous excitement, his utter collapse as they stood together in the dew-wet grass of the graveyard. It all came back to him with the clearness, with the quick cruelty of a lightning stroke. His eyes drooped, his face paled, his head dropped lower and still lower, till his chin rested on his breast. People in the court room who looked on him knew that something had happened to him; but whether it was physical illness or mental distress they could not tell. For a minute the room was still as death. Then the stillness was broken by a slight movement among the rear benches, swift footsteps were heard in the aisle, a boy came hurrying down to the bar of the court. His face was drawn and pale with excitement and fatigue. His eyes, from which shone both distress and determination, were fixed straight ahead of him. As he went, he held out his hands toward the old man on the witness stand.

“Gran’pap! Oh, Gran’pap! I did it. I pulled up the stakes. I threw ’em into the brook. I did it in the night—in the night—in the moonlight. Oh, Gran’pap!”

He crossed the bar, wound his way among chairs and tables, reached the witness box, and stood there leaning against it, and looking up beseechingly into his grandfather’s face.

For one moment Abner Pickett sat motionless, as if he were stunned, looking with staring eyes at the boy standing below him. Then he reached his long arms out over the rail and wound them about his grandson’s

shoulders, and then he hid his rugged face in the soft curls that clustered on the boy's neck.



CHAPTER VIII

The moment of silence in the court room was followed by a confused murmur of voices. People were moving about in their seats and craning their necks, anxious to see. Charlie Pickett was on his feet, his face flushed, his breast heaving with emotion, his eyes fixed on the two figures at the witness stand. When Abner Pickett lifted his face from Dannie's neck, his eyes were filled with tears.

"Where did you come from, Dannie?" he asked; and Dannie answered:—

"I came from home, Gran'pap."

"Not to-day?"

"Yes, to-day."

"But, Dannie, how—how—?"

"I had to, Gran'pap. I had to tell you. I had to make it right as near as I could, as quick as I could."

Again the old man, leaning far out over the rail, drew the boy up to his breast.

For the moment Marshall was at a loss how to act. He did not quite know what was coming next. Then his long experience and his native shrewdness came to his rescue, and he rose to the situation.

"That will do, Mr. Pickett," he said. "Dannie, you may take the witness stand."

The next minute Dannie was in the place vacated by his grandfather, and the old man, refusing to go far away, had dropped into a chair by the defendant's table, inside the bar.

Marshall began his questions with gentle emphasis.

"Your name is Dannie Pickett?"

"Yes, sir."

“And you are a grandson of the witness last on the stand?”

“Yes, sir.”

“And is it true that you pulled out the stakes set by the engineers of the Delaware Valley and Eastern Railroad Company?”

“Yes, sir, it is.”

“When did you remove them?”

“The same night they were set.”

“At about what hour of the night?”

“I think it was about eleven o’clock when I began. I don’t know what time it was when I got through.”

“How many stakes did you remove?”

“All of ’em. I began in the potato field where they left off surveying that night, and I pulled ’em out all the way through the meadow, and across the road, and in the graveyard, and down the gap, and along the hill on the other side.”

“You made a clean sweep of it, didn’t you?”

“Yes, sir; I think I found every one, as far as I went.”

“Was any one there with you?”

“No, sir. I did it all alone. Oh, yes! there was some one with me comin’ back. The other engineers. I met ’em in the gap.”

“You mean the engineers of the T. & W.?”

“Yes, sir.”

“So they were with you, were they?”

“Yes, sir. But not until after I was all through an’ comin’ home. Then they made me go back with ’em.”

“Down through the gap?”

“Yes, sir, all the way.”

“Did you tell them you had removed the stakes?”

“No, sir, I didn’t.”

“Did they know it?”

“No, sir, they didn’t. Not one of ’em. I didn’t tell anybody, not even Gran’pap.”

“Did any one ask you to remove those stakes?”

“No, sir, not any one.”

“Then why did you do it?”

“Well, I just thought they had no right to set ’em where they did. I thought they wouldn’t ’a’ done it if Gran’pap had been there. I thought if I pulled ’em out, they couldn’t build any railroad through the graveyard. And then, I got very angry at the engineer for what he said to me when I asked him about the railroad.”

“What did he say to you?”

“Well, if you please, I’d rather not tell.”

“You needn’t. Now, Dannie, didn’t you know that you were doing wrong when you removed those stakes, no matter what your motive might have been?”

“I didn’t stop to think much about it then. I just went ahead and did it. But I know now that it was wrong. I’ve known it ever since it was done. I haven’t any excuse to make.”

“Do you want it understood that you alone are to blame, and that you alone are responsible for this deed?”

“Yes, sir. That’s it exactly.”

“Well, let us see about that. Did you, on the evening of the night in which you removed the stakes, hear your grandfather declare that no person could do a better deed than to pull them all up and throw them into the brook?”

“Why, yes, sir—yes; I heard him say somethin’ like that.”

“Very well. Did or did not that declaration have anything to do with your subsequent conduct?”

Marshall saw that the sympathy of the audience, and possibly of the court, was with the child, and he desired to trace the moral, if not the actual responsibility for the deed back to shoulders that would not be spared. Dannie looked hopelessly down at his questioner, and then turned an appealing glance to his grandfather, who sat with bowed head and eyes fixed on the floor, and did not see him.

"I'd rather not answer that question," he said, at last, and then added quickly: "If my grandfather'd had any idea of what I was goin' to do, he'd 'a' stopped me. I know he would. Why, I stole out o' the house in my stockin' feet, so he wouldn't hear me. And I never told 'im what I'd done till I told 'im here to-day. Never! never! never!"

"There, Dannie; don't get excited. Just keep cool and answer my question. Would you have gone out that night and removed those stakes if you had not heard your grandfather say it would be a good thing to do?"

Again the boy looked hopelessly down at the lawyer and was silent. He knew, in his heart, that it was his grandfather's declaration that had started him on his midnight errand; but he would rather have faced the terrors of the jail than said so. He would not willingly shift any part of the burden of responsibility to other shoulders than his own. In the midst of the profound silence which followed Marshall's question, Abner Pickett rose slowly to his feet.

"I'll answer that," he said. "The boy ain't to blame. He simply did what he thought I wanted done. In his heart and soul the child is innocent. If any crime has been committed, I'm the one who is guilty of it."

He spoke slowly, distinctly, yet with a tremor in his voice that betrayed his deep emotion. It was all out of order, this declaration of his, in the midst of the examination of another witness, but no one interrupted him; even court and counsel listened with close attention until he finished his appeal and dropped back into his chair. Then Dannie himself was the first to speak.

"Oh, no, Gran'pap!" he exclaimed; "oh, no! Maybe I wouldn't 'a' done it but for what you said; but I ought to 'a' known you didn't mean it. I ought to 'a' known you wouldn't 'a' let me done it. I ought to 'a' known you wouldn't permit anything wrong. And that was wrong, and I knew it; only I didn't stop to think. Oh, no, Gran'pap; I'm to blame! I'm to blame!"

He held out his hands appealingly as he spoke, gazing alternately at his grandfather and at the lawyer. Tears were coursing down the old man's cheeks; and out in the court room many an eye was moist watching this little drama of love and protection, staged and played in the bar of the court.

It was plain to the dullest understanding that the boy was frank and truthful, and that the old man was not inclined to shirk his share of the responsibility. But Marshall was not yet satisfied. He wanted not only the truth, but the whole truth. It was due to his client that every fact should be brought out in detail. He took up again the regular order of examination.

"Were you subpoenaed as a witness in this case?" he asked.

"No," replied Dannie, "I wasn't."

"Then what was it that led you to come here and make this remarkable statement?"

"Well, I'll tell you how it was. I got to thinkin' about it yesterday, after they'd all gone, and I thought an' thought, till it seemed as if it'd kill me if I didn't tell somebody. An' so, last night, I told Aunt Martha. An' she said the only way to make it right was by tellin' those that had been injured by what I'd done. So we made it up between us that I was to come up here the first thing this mornin' an' tell it all. And I tried to get here before court began; but—but I couldn't make out to do it. I—I'm sorry I was so long comin'; but I hope it ain't too late?"

Marshall looked up at him incredulously.

"You haven't come here from Pickett's Gap to-day, my boy?"

"Yes, sir. I left there this mornin' real early; before it began to drift much."

"But the roads are absolutely impassable!"

"I know. We had hard work. The roads were drifted full. I came in the stage as far as the poor-house. The horses gave out there. Then the stage driver and I, we footed it as far as Keene's. From there I walked on to Mooreville alone."

As he recalled that awful journey Dannie looked up wearily, and out over the sea of sympathetic faces turned toward him in the court room. But he

was too tired to see them. They floated indistinctly before him. They seemed to advance and recede, to expand and contract, alternately to fade and find form before his aching eyes.

“And did you think it necessary to come here at the risk of your life to make this acknowledgment?” asked Marshall.

“Why, I didn’t think just that way about it,” replied the boy; “but I knew I’d done wrong to keep it to myself so, an’ I felt that I ought to get here an’ tell about it as soon as I could. I wanted Gran’pap to know. I never kept anything from him before, an’ I wanted to tell him first, because he’s done more for me, an’ been kinder to me than anybody else. An’ then—an’ then I’d heard that the engineer who made the night survey had been accused o’ pullin’ out those stakes, or havin’ ’em pulled out; an’ I was afraid they’d try to prove it on ’im here, an’ maybe find ’im guilty of it before I could get here an’ set ’em right. And I wouldn’t ’a’ had that happen—why, I’d sooner ’a’ died in the snow than had ’em do that. He was so good to run his line around the graveyard. He was so gentle, an’ kind, an’—an’, oh, he couldn’t ’a’ been kinder an’ gentler an’ sweeter to me if he’d ’a’ been my own father.”

Charlie Pickett, sitting back among the spectators, felt the hot blood surge into his face, and the paternal passion flood his heart. He longed to take this boy at once in his arms,—this boy whose frank acknowledgment of his fault had brought tears to a hundred eyes, whose simple story of dreadful daring for conscience’ sake had thrilled every breast in the court room,—to take him at once into the shelter of his love, and keep him and protect him against all the world.

But Marshall was asking his last question.

“Have you anything more to say, Dannie, in extenuation of your conduct? I do not know what action, if any, the officers of the D. V. & E. will take against you. Your offence was certainly a serious one. But, in view of any possible punishment they may have in mind for you, I want to give you this opportunity for any further explanation you may wish to make.”

“I’ve nothing more to say,” replied Dannie, wearily; “I’ve told you all. I’m ready to be punished for what I’ve done. I made up my mind to that before I came here. I’m willin’ to go to jail; except that I’d be sorry for the

disgrace I'd brought on Gran'pap an' Aunt Martha. They brought me up to be honest an' good. An' I'd be sorry on account of my father, too, very sorry, if he should ever know about it. But I've no complaint to make, an' I'll try to stand whatever comes without cryin'."

Yet even as he spoke, the boy's lips trembled, and great tears filled his eyes. He could not help thinking of those gloomy and forbidding cells in the county jail.

A gentleman who had been sitting inside the bar, listening intently to the testimony, came over hurriedly and whispered to Marshall. The latter rose at once from his chair, and said to Dannie:—

"Mr. Rayburn, the general manager of the D. V. & E. just informs me that his company will not prosecute you for your offence against the law. He says he believes that your conscience, has already punished you with sufficient severity to say nothing of what you have endured in forcing your way here through this terrible storm to set us right on what has been, heretofore, an unexplainable mystery. Moreover, he wishes me to thank you for your frank and manly statement of the facts. That is all. You may leave the stand."

But Dannie did not move. The revulsion of feeling on learning that, after all, he was not to be punished, that the iron doors of the grim old jail were not to open for his admittance, was too strong to be controlled. His face flushed with sudden joy, and then the color all went out and he grew white as death. The lashes of his eyelids drooped upon his cheeks, his hands fell to his sides, his chin sank upon his breast, and those who looked on him saw that he had been stricken with sudden faintness. A court attendant hurried into a side room for a glass of water. Abner Pickett and Marshall were on their feet in an instant hurrying toward the fainting boy. But before either of them could reach his chair, Charlie Pickett, with great strides, had swung himself from the bench where he was sitting to the boy's side, and had caught him in his arms. He held him to his breast, looking about for an instant to see what he should do. Then, without waiting to follow any of the dozen suggestions that were given to him simultaneously by lawyers and officers of the court, he started with his burden down the crowded aisle. People gave way before him, looking with sympathetic eyes on the limp little body borne so tenderly in the strong parental arms. When he reached

the long corridor, Charlie saw the door of a jury room standing invitingly open, and into that he hurried and laid the unconscious boy at full length on a convenient bench. A court attendant bustled in with a glass of water. A young physician, who had been sitting in the court room, hurried in and offered his services.

“I am a doctor,” he said; “perhaps I can be of some assistance.”

He felt the boy’s pulse, touched his cheek, and listened to his breathing.

“It is only a fainting spell,” he said; “he will come out of it in a minute. Brought on by excitement and exhaustion, I presume. I don’t wonder at it if the boy’s story of his journey through the storm is true.”

He was chafing Dannie’s hands as he spoke, loosening the neckband of his shirt, and touching his cheek to note the returning circulation.

“Whatever he said is true,” declared Abner Pickett; “the boy never told a lie in his life.”

Gabriel, who had followed the party to the jury room, had, with a quick instinct not unusual for him, constituted himself a doorkeeper, and was holding back the curious and inquiring crowd.

“Jest a little faintin’ spell,” he explained. “Ain’t used to court, you know, an’ the judge an’ the lawyers an’ all, they kind o’ scairt ’im. He’ll be all right in a minute or two—much obleeged to ye.”

Charlie Pickett, leaning over the prostrate body of his son, touched his father’s arm.

“Father,” he said, “I want to speak to you for a moment. Dannie is safe in the doctor’s hands. Will you come out with me?”

And Abner Pickett looked up at him coldly and replied:—

“I’ve no call to speak to you, sir. I’ll take care of the boy.”

“Then I shall exercise my right as a father in the presence of these people.”

Before either of the men could speak again, Dannie opened his eyes and looked around him.

“What is it, Gran’pap?” he asked. “What did I do? Where—oh! I remember.”

Then, as his recollection grew more distinct, he exclaimed:—

“I’m not to go to jail, Gran’pap! Did you hear ’em say so? I’m not to go to jail!”

The horrible nightmare of imprisonment that had brooded over his pillow for weeks had suddenly vanished, and he could not contain himself for joy.

“No, Dannie,” replied the old man, gently, “no, not to jail. They’ve no call to punish you. You’ve borne a thousand times too much already. We’ll go home, Dannie. Can you get up? Can you get on your feet? Can you walk? There, that’s it. Hang on to my arm, so! We’ll go home.”

“Father!”

It was Charlie Pickett who spoke. The old man did not heed him.

“Father!”

The voice attracted Dannie’s attention. It had, somehow, a familiar sound. He loosened his grasp on the old man’s arm and turned to look at the speaker. Then the blood rushed into his face again. He recognized his friend of the night journey through the gap.

“I’m so glad to see you,” he said, holding out his hand. “Gran’pap, this man was good to me. He was good to you, Gran’pap, an’ to those in the graveyard, an’ to all of us.”

But Abner Pickett stood speechless, with stony eyes and rigid face. Charlie turned to the tipstaff and the doctor.

“Will you kindly leave us alone together?” he asked. “It is a family matter I wish to settle. Gabriel, please close the door and guard it.”

Then they were alone together in the room; three generations, the same blood running in their veins, the same family pride swelling their hearts, the same will and grim determination shaping every act of their lives. Dannie, stunned by the revelation that had been so suddenly made to him, sank back again upon the bench, looking, with bewildered eyes, first upon one man, then upon the other. He could not yet quite comprehend it; but the joyful truth was forcing itself slowly in upon his mind that this fine, stalwart,

lovable man was his father. When the door was closed, Charlie turned to the boy. Frank, impetuous, unselfish, as he had ever been, he spoke his mind.

“Dannie,” he said, “I am your father. There, sit still; wait till I am through. When you were a baby there was a matter about which your grandfather and I differed. I spoke to him unkindly and in anger. What I told him was not true. I admitted it then, I admit it to-day. He said that no person who had lied to him once should have the opportunity to do so again, and he sent me from his house and forbade me ever to return. I went, leaving you in his custody, knowing that with Aunt Martha also to care for you, you would want for nothing. For thirteen years I have done penance for that lie, but my father has not forgiven me. For thirteen years I have looked forward, day and night, to the time when I should claim you and ask you to come with me, and be my son in fact as well as in name. I am ready to take you now. I want you. Will you come?”

It was so sudden, so astounding, that Dannie could not comprehend it all at once. The bewildered look was still in his eyes.

“You—are my father?” he asked.

“Yes, Dannie.”

“Is it true, Gran’pap?”

“It is.”

The old man, standing with folded arms, his back to the door, his cheeks flushed, his lips set, with lightning veiled under the cold glitter of his eyes, looked the picture of dignified wrath.

Dannie turned again to his father.

“And—and you lied to Gran’pap?”

“Yes, Dannie, I did.”

“Is that true, Gran’pap?”

“That is true.”

The words might have come from lips of marble, they were so precise and passionless.

“Father,” exclaimed Charlie, “be just to me! Say that it was the first and last lie I ever told you. Say that afterward I acknowledged my fault, and asked your forgiveness, and you would not listen to me.”

“That is true.”

Cold as ice, clear as crystal, the answer to his son’s appeal came from the old man’s lips. For a moment there was silence, and then Dannie spoke again to his father.

“And you want me to come—to come an’ live with you?”

There was a tremor of joy in the boy’s voice at the very thought of such happiness as this.

“I do. I want you. I need you. I cannot live my life as I should without you.”

“Gran’pap, may I go?”

At last the supreme moment had come, the vital question had been put. Abner Pickett still stood there, motionless, with folded arms.

“You may choose,” he said, “between him and me. I shall have no divided allegiance. If you go with him, you can say good-by to me to-day for all time.”

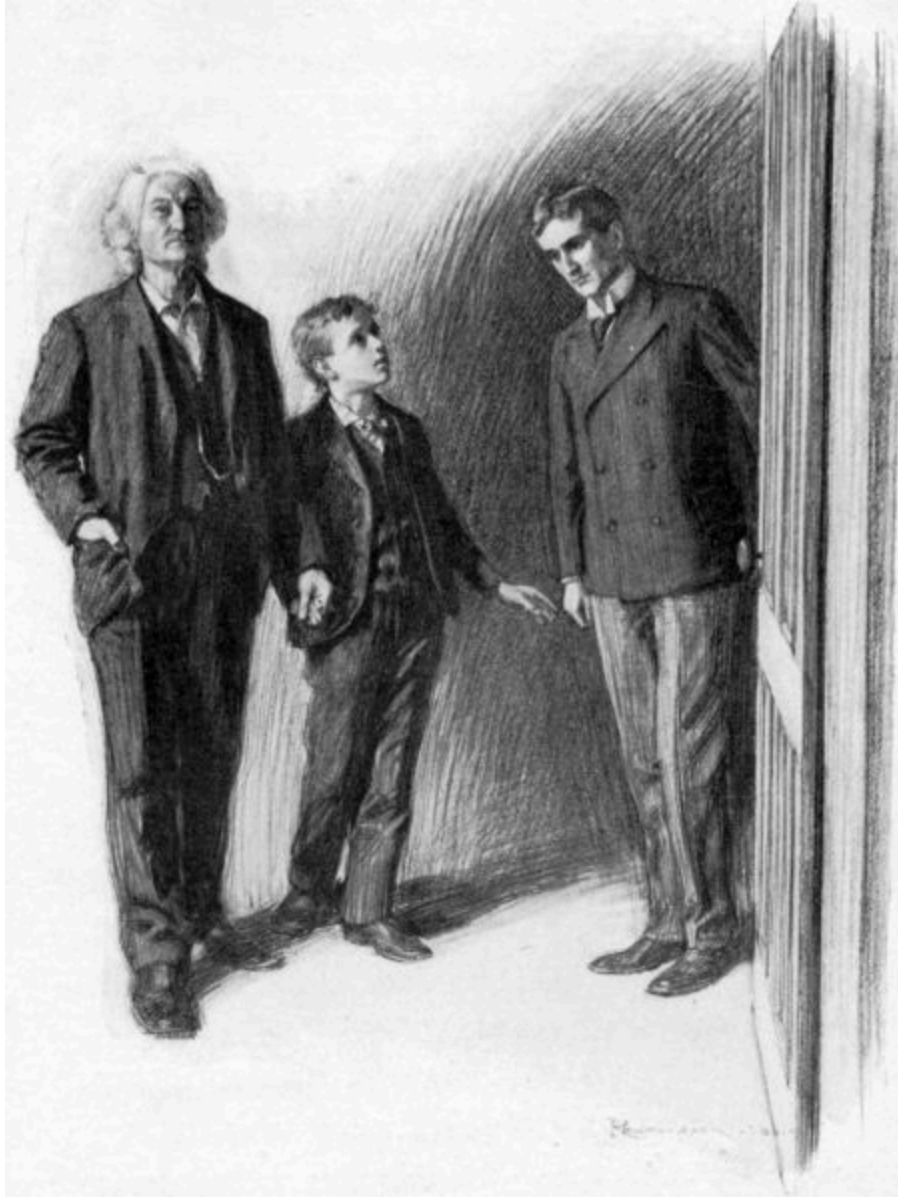
Never before had he so veiled the passion in his heart with calm utterance of words. But if his speech was cool, it was determined. He meant what he said to the last degree. He wanted far more from his son than a mere acknowledgment of his fault, and a petition for forgiveness. It was not enough to come to him with bowed head and penitent words. He wanted the prodigal to prostrate himself in the dust at his father’s feet, to yield everything, to receive nothing. Strange he did not know that a Pickett never had done that, never could do it, never would do it; that even in the confession of a fault, the Pickett pride would never humble itself more deeply than honor and conscience might demand. Yet here was this old man, in his own pride and stubbornness, choosing to give up absolutely and forever his choicest living treasure, rather than yield one jot or tittle of the stern law he had laid down thirteen years before. Charlie Pickett was not deceived by his father’s calmness. He well knew that if Dannie came with him it would be outlawry for the boy from the old home; it would be the

breaking of every tie that bound him to his grandfather's heart and hearth. He knew what they had been to each other—those two—could he bend himself to the severance of those sweet relations? Would it not be cruelty to both of them? And yet—and yet he wanted so to have his son.

On Dannie's face the lights and shadows fell alternately. He knew not what to say or to do. How could he choose between these two?—between the father who had come suddenly into his life like a dream of light and sweetness, and the grandfather who had loved him and cared for him, and had been his comrade and playfellow from babyhood. Charlie Pickett, looking on his son's face, saw there the agony of indecision, and his heart melted. Tears sprang to his eyes, and his voice choked with emotion.

“Father,” he said, “I yield. He shall stay with you. It is right, it is just. Some day, when I am old and alone and need him, as you do now, I will call and he will come to me. Go with him, Dannie. Be good to him, as he has been to you. Good-by! Good-by, my lad,—good-by!”

He lifted the boy from the bench, clasped him to his breast, kissed him once and again, and then gently placed him at his grandfather's side. He turned to the door, unclosed it and [held it wide open](#), standing with bowed head and trembling lips and tear-dimmed eyes, [while the old man and his grandson](#), hand in hand, [passed out into the corridor](#).



“He held the door wide open while the old man and his grandson passed out into the corridor.”

At the head of the staircase Dannie stopped, turned, and ran swiftly back into the jury room. He leaped sobbing into his father’s arms.

“Father!” he cried, “Father, I’m goin’ to bring you an’ Gran’paw together. I want you both. I need you both. I must have you both. I’m goin’ to bring you together if it takes my life to do it. I will—I will!”

Again the strong man, with tears streaming down his face, strained the boy to his heart.

“Thank you, Dannie,—thank you! And God speed the day of reconciliation. Good-by again, my boy,—good-by!”

Once more he released him, and Dannie hurried back to where his grandfather stood on the steps, fearful lest the old man might think that, after all, he had chosen to desert him. But the grim smile of triumph on Abner Pickett’s face as they passed down the staircase and out to the courthouse porch, told of the satisfaction that reigned in his heart over the victory he had won, and over the fact that the boy was to be his and his alone, for years to come.

He stopped to button Dannie’s great-coat, and tie wraps about his throat and ears, and then they started out together into the snow-bound world, pushing their way through the drifts that blocked the path to the street; while Charlie Pickett, looking from an upper window, with tear-blurred eyes, watched them out of sight.

CHAPTER IX

Long after his father and his son had vanished from sight between the great snow ridges that lined the street, Charlie Pickett stood at the window of the jury room, looking out upon the wide, white landscape, thinking of the days gone by, of the day just passed, of the days he still hoped might come in the future.

Some one touched him gently on the shoulder. He turned and saw that it was Gabriel, and reached out to him a welcoming hand.

"I'm glad to see you, Gabriel," he said. "I've been trying to get a chance to speak to you ever since you've been here. I've been wanting to ask you about Dannie, and about Father, and Aunt Martha, and yourself, and about the old place. It's been a hard day for me, Gabriel."

"The' ain't no doubt o' that, Char—Mr. Pickett, I mean."

"No, not Mr. Pickett. I'm always Charlie to you, you know. We've worked and tramped and hunted and fished together too often for any formality of that kind, Gabriel. But I am glad to see you. Here, sit down. Tell me about Dannie. I've just given him up to Father. I had a right to take him, Gabriel; I wanted to take him; but I knew it would break Father's heart, and I couldn't do that, I couldn't do it."

"Well," replied Gabriel, slowly, "I ain't got nothin' to say against Abner Pickett. He's treated me like a white man fer eighteen year an' up'ards; but ef I had a son like you, an' a gran'son like Dannie Pickett, I'll be everlastin'ly gee-hawed ef I wouldn't git down off'n my high hoss once't in a w'ile, say once't in a year to start on, an' treat 'em both like human bein's. Not to say but w'at he's good to Dannie. W'y good ain't no name fer it. They ain't nothin' he wouldn't do fer that boy, nothin'—excep' to let 'im hev the benefit uv a father."

"And is Dannie equally fond of him?"

"Sure. They're jes' like twins, them two is. W'enever an' w'erever you see one uv 'em, you're jes' nat'ally bound to see t'other."

“So Aunt Martha has written me; and I’m glad of that, Gabriel. It is the only thing that reconciles me to his loss. But does he never think about his father? Does he never ask for him? Does he never want him? Tell me that, Gabriel.”

“Well, he ain’t never asked ’is gran’father about ye more’n once, I reckon. I heard ’im ask once. An’ the way—well, never mind that. Ez ol’ Isra’l Pidgin use to say: ‘You can’t close up a crack by hammerin’ a wedge in it.’ But ef he’s asked me about ye once’t, he’s asked a hunderd times. He’ll come on ye sudden like, w’en ye ain’t expectin’ it, an’ fire away till you don’t know wuther you’re standin’ on your head or your feet. He come onto me once’t that way las’ fall in the potater patch. ‘Gabriel,’ says ’e, ‘w’at did my father go away fer?’ sez ’e. Well, now, I could ’a’ told ’im, an’ I couldn’t ’a’ told ’im, an’ I didn’t do nary one. ‘Did he an’ Gran’pap hev a quarrel?’ sez ’e. An’ bless my soul ef I knew w’at to say. I couldn’t go to fillin’ of ’im up with stuff about ’is gran’pap; an’ I hadn’t no warrant to do it, anyhow. I didn’t hear ye quarrel. ‘Don’t never tell fer a fact w’at ye ain’t willin’ to swear to,’ ez ol’ Isra’l Pidgin use to say. But I kin tell ye this, that ef they’s one thing in this world ’at that boy wants to hear about, an’ to talk about, an’ to hev about, it’s his father.”

“Thank you, Gabriel. Thank you a thousand times for telling me that.”

“Yes, an’ the most surprisin’ thing about it all is, w’at a lot of blamed ignoramuses we all be w’en he asks any of us anything about ye.”

“I know you’re all very kind about it, Gabriel, and very wise and considerate. I’m sure he couldn’t be in better hands.”

“Yes, your Aunt Marthy jest dotes on ’im.”

“I’m certain of that. But it was a strange thing for him to do, Gabriel, to pull out that line of stakes. I came up the gap with him the night he did it. He wanted to tell me then. I’m sorry now I didn’t permit him to. It might have saved him a deal of suffering.”

“Well, he’s taken it hard, I can tell ye. He ain’t the same boy he was six months ago. He couldn’t eat nor sleep nor rest, it worried ’im so. We all thought he was sick, he fell away that bad. Even your Aunt Marthy couldn’t do nothin’ fer ’im. But say, wa’n’t it grand, the way he come in there at the

wind-up an' told how things wuz; puffickly regardless of wuther he spent the nex' six months in jail or no? There's the Pickett grit fer ye!"

"Gabriel, I think it was heroic." And the tears sprang into Charlie Pickett's eyes as he thought of that pathetic little figure facing the crowded court room, battling with his fear and conquering it, brave to the limit in the cause of conscience and of truth.

"Yes, it wuz," responded Gabriel. "An' how under the sun an' moon an' seven stars he ever got here through them drifts! How did 'e git here, anyhow? He couldn't 'a' druv. They couldn't no hoss 'a' got through. He couldn't 'a' walked. Goliath o' Gath couldn't 'a' walked it. An' 'e didn't fly. How *did* 'e git here, anyhow?"

"I don't know, Gabriel. I hadn't thought of it. How did he?"

The two men gazed at each other with a look of astonishment in their faces that slowly grew into awe. Then Gabriel lifted his eyes and pointed heavenward.

"God a'mighty," he said reverently. "He done it fer 'im. Nobody else could."

Then, for many minutes, the two men sat in silence. Gabriel was the first to speak.

"He'll be goin' home with 'im now, I reckon. I seen 'em start to'ards the depot."

"Yes," replied Charlie, rising and going again to the window; "but I doubt whether they will get farther than Port Lenox to-night. The trains will be late, and the roads will not be broken. Poor boy! I shall be glad to feel that he is at home with Aunt Martha, resting from his physical strain, relieved of his mental burden. Well, Gabriel, let's go back into court. I don't suppose they'll want us any more, but we'll see what they are doing with the case."

But court had adjourned. As the two men passed out into the hall the people from the court room came crowding by. Among them was Nicholson, the Delaware Valley and Eastern engineer. When he saw Gabriel his face lighted up with a smile.

"Hello, my bumptious friend!" he shouted; "where's your horn?"

“Left it to hum,” replied Gabriel, readily, “to scare off tramp engineers ’at might come ’round settin’ stakes in the snow-drifts.”

“Are you going to leave it home when you die, or will you take it along?”

“Oh! I’ll hev it with me on that trip. You can borrow it occasionally ef you want to. Blowin’ on it once’t in a w’ile’s a great relief to them in misery.”

A crowd was gathering, and Gabriel’s sally was greeted with a shout of approval. It nettled Nicholson, and he turned away. He did not care for fun unless he himself could be the beneficiary.

“Children and fools—” he muttered, “the old saying still holds good.”

“Say!” called Gabriel after him; “did you ever hear of ol’ Isra’l Pidgin?”

“Oh, yes!” was the quick reply, “he was an idiot that lived up in York State.”

“Yes. ’Member wut he said about the feller ’at goes ’round with a chip on ’is shoulder lookin’ fer somebody to knock it off?”

Nicholson did not reply.

“Well,” continued Gabriel, “he says, says ’e, ‘that feller’s lucky ef ’e don’t git ’is shoulder put out o’ jint a gittin’ of the chip knocked off,’ says ’e.”

But Nicholson had disappeared. He was pushing his way down the winding staircase, satisfied that, in the estimation of the crowd, he was no match for Gabriel, and anxious to escape. In the lower hall he met Charlie Pickett. He went up to him with outstretched hand, for he was generous as well as impetuous.

“Pickett,” he said, “if I made any fool remarks on the witness stand to-day reflecting on you in any way, I want to ask your pardon. You know there’s no man in the profession, nor anywhere else, for that matter, whom I esteem more highly than I do you. My quick tongue always did get me into no end of trouble, and I’m afraid it always will. It wasn’t two minutes ago that I was crushed in repartee by that wise fool from Pickett’s Gap, Gabriel, by name. But, Pickett, say! whose idea was that moonlight survey, anyway? It was a genuine *coup-d’état*.”

“Oh, that was Wilson’s scheme. Our chief, you know. He knew that you were running along the westerly bank of the Delaware that afternoon and that a location by us next day would be too late. We didn’t dream that you would get through the gap that night. I didn’t dream that you had been through it when I went down in the moonlight. If I had seen your stakes there, I should more than likely have turned back.”

“Well, it’s lucky for your people that you didn’t see them, then. For the only hope you have, the way the matter stands now, is in the theory that your board was the first to adopt the location. But that was a strange thing, wasn’t it, about that boy pulling out the stakes? It wasn’t a mere dare-devil adventure, you understand. It was done conscientiously in order that justice—from his standpoint—might prevail. Took some courage to go down through that gap in the night-time you know, and pull out that line of stakes. But, talk about grit and moral heroism! did you ever see or hear of anything equal to that boy coming down from Pickett’s Gap, through a world of drifted snow, and going on the stand, voluntarily, to swear himself into jail just to set us right on the matter of the stakes, and to do justice to you? Say, it was magnificent! If I had a boy like him, I’d keep him with me day and night, just for the inspiration.”

“Yes? I’m glad to hear you say that. He’s my boy, Nicholson. You didn’t know that, did you?”

Nicholson stared in amazement.

“Your boy!” he exclaimed. “Why, look here, Pickett! You’re not a son of the owner of Pickett’s Gap, are you?”

“Yes, I am.”

“Give me your hand. You’ve got a father and a son to be proud of. Why, that old man will move heaven and earth to defend and preserve what he considers his rights. I looked into the muzzle of his double-barrelled shotgun one day; well, it was lucky the sheriff came when he did, or I’d have been picking bird-shot No. 2 out of my anatomy to this day. And I don’t blame him a bit—not a bit. I’d have done the same thing in his place. But that boy, Pickett, why that boy’s a hero. I wondered what you carried him out of the court room so tenderly for when he fainted. Where is he? Did he get over his illness? No wonder he went to pieces, poor fellow!”

When Nicholson once started in to talk, it was of no use trying to interrupt him till he was through.

“Yes,” replied Charlie, sadly, “he recovered; he went home with his grandfather.”

Nicholson stood for a moment in deep thought.

“Look here, Pickett!” he exclaimed finally. “I don’t want to uncover any family secrets; but what I can’t make out is why in the world, if you own such a boy as that, he don’t know it. And, why in all the worlds, if you’ve got a right to have the company of a human being, with his intelligence and conscience and grit and grace, you don’t avail yourself of it.”

“Well, Nicholson, it’s a long story. I can’t tell it to you now. You wouldn’t understand it if I did. But I hope some day to have him with me. How soon or how far away that day may be, I cannot tell. At any rate, it will take a thousand unkind remarks from you, hereafter, to overbalance the kind things you’ve said about me and mine in the last twenty minutes.”

The two men shook hands warmly and passed out with the crowd. Charlie Pickett went to his hotel, but not to rest. He could not brush from his mental sight the vision of his son’s pale face and anxious eyes. He heard always in his ears the boy’s pathetic voice as he lay exhausted on the bench in the jury room and pleaded that he might go with his father.

When morning came, the vision was still before him, the voice was still in his ears. He paid little heed to the remaining witnesses who testified in the case, and when, after fixing a day for argument, court finally adjourned, he went back to his hotel with his mind in a tumult of anxiety and desire; anxiety lest the great physical and mental strain which the boy had undergone might bring on some sudden and severe illness; desire that he might be with him, might look at him, might talk to him, might hear his voice and press his hands. Nor is it strange that his brief interview should have inspired such tender and tumultuous thoughts. Charlie Pickett’s mother had died in his childhood. His wife had yielded up her life for her son. His father had driven him from home. This boy was the only one in all the world to whom he was united in the bonds of blood and of undisguised, untrammelled, unsatisfied affection. The more he thought about it the more he wondered why he had, on the previous day, so readily yielded to his

father's stern ultimatum. The more he considered it, the more the unreasonableness of it, the injustice of it, the downright cruelty of it impressed itself upon his mind. The restriction under which he had placed himself chafed and galled him beyond endurance. At last, unable longer to withstand the imperious demand of parental passion, he buttoned his great-coat about him, pulled his cap over his eyes, and set his face toward Pickett's Gap, intent on doing something, anything, to relieve the unbearable situation in which he found himself. A train on the Mooreville branch was just leaving for Port Lenox. He boarded it hastily, and contained himself as best he could while the wheezing engine puffed its slow way between banks of shovelled snow so high that half the time they hid the surrounding country from the sight of those in the cars.

At Port Lenox he waited an hour for the down train on the main line, striding up and down the platform like a caged animal. When he left the car at Fisher's Eddy, the short winter day was already at its close, and the summit of the hill range, through which the gap wound its sinuous way, was already all but indistinguishable against the western sky. He started across the street toward a livery stable to get a horse and sleigh, but, changing his mind suddenly, he struck out along the middle of the roadway toward the hillside. The thought of waiting for a team to be ready, of forcing a tired horse up the hill through the heavy snow, was too much for his nearly exhausted patience.

Many and many a time, in other days, he had walked the road from Fisher's Eddy to the Pickett's Gap homestead in time that would have done credit to the best horse in Meredith County. He felt that he could do it tonight. Moreover he knew that he needed the exercise in order to work off, if possible, some of the surplus energy with which his veins and muscles were charged. Perhaps, when he arrived at his destination, he might not be so impetuous, he might be more considerate, more gentle, more patient under the provocation which was sure to come, more cautiously firm in his just demands.

When he reached the place where his survey terminated, on that eventful September night, he stopped for a moment and looked down through the darkness to the twinkling lights of Fisher's Eddy as he had looked that night. Then, pushing on through the snow-burdened glen, he recalled, as he walked, every word and tone and look of the boy who was his unwilling

companion on that former journey; how they noted the location of the curve; how they halted at the graveyard; how they said good-by at the gate.

Here he was now, again at the gate, almost within sight, within hearing, within touch of his boy. The thought of it brought a sudden weakness to his limbs, and he stopped and leaned heavily against the post on which Dannie had sat one happy morning and bade his grandfather good-by. Here he was. What was he to do? What was he to say? How should he enter the house? How introduce the object of his mission? Abner Pickett had forbidden him to return; how would he greet him to-night? In his unreasoning impetuosity he had thought of none of these things until this moment. Now they presented themselves to him with perplexing persistency. Not that he was weakening in his purpose, he would not admit that; but how could he best accomplish the object he had in view? That was the question. He moved slowly up the path, turning these things over in his mind, until he reached the front porch. At the side of the porch there was a window opening from the sitting room. The curtain had not been drawn, and he could see in. The impulse to look before he entered came upon him, and he pushed his way through a huge bank of loose snow, close to the window ledge, and fastened his eyes upon the occupants of the room.

A table was drawn up in front of a great wood fire, for it was a bitter cold night, and Abner Pickett was sitting by it reading his paper. In his face was still the hard, stern, uncompromising look with which he had greeted Charlie in the jury room the day before. There was scant encouragement in that face, indeed! Aunt Martha was sitting in her accustomed chair by the fire, busy with her knitting; and Dannie, on a stool by her side, with his head resting in her lap, gazed at the crackling logs and the leaping flames, looking up now and then to answer some question that she asked him. His face was turned so that Charlie could see it plainly. It had in it a look of weariness, indeed, but of content—of absolute content. It was a quiet, peaceful, pleasant scene; but in another moment he, Charlie Pickett, was to break in upon it, to destroy it, to set a gentle woman's heart throbbing with apprehension and fear, to arouse the unconquerable passion of a stern old man, to plunge a weary, peaceful, contented boy into a new turmoil of trouble and of grief. And to what end? Simply to satisfy his own selfish desire. A revulsion of feeling came over him as he looked. The old man moved uneasily in his chair, laid down his paper, and turned toward Dannie.

He appeared to be saying something to him, and as he talked, the sternness, the hardness, the coldness vanished from his rugged features, and his gray eyes, piercing when he was in anger, softened now with the mild glow of tenderness and affection. Charlie saw it all by the bright light of the fire, understood it all, felt it all, and, waiting no longer, he turned away. With his face to the thick darkness he struggled out to the path, down through the gate, and on into the middle of the road. He thrust behind him his own desire, his own disappointment and sorrow and loneliness, and once again, like the man that he was, he thought only of his father's comfort and the happiness of his son.

A figure loomed up out of the darkness before him and stood still.

"Who goes thar?" came the challenge.

"It is I, Gabriel, Charlie Pickett."

"Charlie Pickett! An' w'at in the name o' the seven wise men an' their jigger-books be ye a doin' here?"

"I came to get my boy, Gabriel. I looked in at the window and saw that he was content, and his grandfather happy, and I hadn't the heart to disturb their comfort and peace. So I am going again. They will not know that I ever came. It is our secret, Gabriel. Do you understand?"

"Yes, I understand; but look here! That ain't fair, you know. You're his father. You've got the fust right."

"True, but I'm not demanding it. Don't tempt me. My mind is made up. Let me go now before I falter. Good night and good luck to you, Gabriel!"

He reached out his hand, and Gabriel took it with a tremendous grasp.

"The genuine Pickett grit!" he exclaimed. "You're a chip o' the old block, after all. So's the boy. Wher's your hoss? What! Didn't hev any? Walked up? Well, I'll be—say, you'll do! You're Pickett to the backbone! So's the boy. Consarn ye, both o' ye. Blame the hull three o' ye! You're a set o' the contrariest, pig-headedest, big-heartedest human bein's 'at the Lord ever let tromp on his foot-stool!"

It was evident that Gabriel's feelings were getting the best of him, for his voice was very husky as he continued:—

“Good night! Ef ever you want anything done around these parts, you let me know. I’m it when you speak. Don’t forgit!”

“Thank you, Gabriel! Thank you a thousand times. Good night!”

The next moment Charlie Pickett’s figure was lost in the darkness, and Gabriel stood gazing at the place where it had disappeared, muttering to himself:—

“Well, ez ol’ Isra’l Pidgin use to say: ‘On the hull, darkness covers more good deeds than evil ones.’”

CHAPTER X

Whenever a member of the Pickett family set his mind on the accomplishment of a certain object, he found no trouble too great, no task too arduous, no effort too severe to bring about the desired end. Abner Pickett set his mind on going home with Dannie. He knew that it would be impossible, that day, to drive back through the blockaded country roads, but that did not deter him. There was the railroad. It was possible that trains might be running on the Mooreville branch. By going on the cars twenty-five miles to Port Lenox, and thence down the river to Fisher's Eddy, he might still be able to reach home that night. With this plan in view, he hurried along to the railroad station which, fortunately, was only a block from the court-house, and found that a train was scheduled to leave in twenty minutes. There was a lunch-room near by, and, remembering that Dannie had had nothing to eat since his early morning meal, he took the boy in and furnished him with food. Much as it went against Dannie's inclination to eat, he found himself, after having partaken of his hurried meal, stronger and in better spirits than at any time since his arrival at Mooreville.

The conductor on the branch train could not promise them that they would reach Port Lenox that night. Indeed, it seemed, a dozen times, as though the cars would be stalled in the huge drifts of snow that were piled across the rails. But the wind had gone down, and the farther the train went the more clear track was found, and finally, at ten o'clock in the evening, they pulled triumphantly into Port Lenox. The train on the main line was four hours late, and they were just in time to catch it. It brought them to Fisher's Eddy an hour before midnight. There, where Abner Pickett was known by every one, he had no trouble in procuring a team and a driver who was willing to make the attempt to get up through the drifted roads to Pickett's Gap. It never once occurred to the persistent old man that it would be wiser, safer, and far more comfortable, both for him and Dannie, to remain at the village until morning. He had made up his mind to set his grandson down by the Pickett fireside that night, and no obstacle that had

yet presented itself was sufficient to deter him from carrying out his purpose.

And, after all, the journey was not a hard one. It had ceased either to snow or to blow. The road up the hill was by no means impassable. It was on the sheltered side of the ridge, and had not felt the full fury of the storm. Through the gap there were no drifts; the horses could trot easily along; and, within an hour after midnight, the travellers were in their own home. That Aunt Martha was rejoiced to see them goes without saying. She was spending the night as she had spent the day, moving about the house in an agony of fear, censuring herself constantly for permitting her dear boy to leave home that morning in the face of the impending storm, awaiting news of him which she felt she must have, and yet dreaded to hear.

And here, at last, he was, unexpectedly home, safe and sound—ah, no! not quite safe and sound; his haggard face, his lustreless eyes, his pinched lips, his weak voice, all told a story of exhaustion, the cause of which Aunt Martha was not long in learning. She made ready, with all haste, some nourishing food and hot drink, and both the old man and the boy partook of it freely. After this Dannie dragged his tired feet up the dear old staircase to his own room, to his own bed, to his own sweet pillow, and not—he knelt to thank his God—not to the hard cot behind the grated door of a dreadful cell in the county jail. But he could not sleep. It was not the joy of being in his own home that drove slumber from his eyes, nor the memory of that awful journey through the drifting snow, nor yet his hard experience as a witness on the stand—it was the joyful, the dreadful, the bewildering thought that in one brief hour he had found a father who was more than all he had ever pictured him to be, a father who loved him and would have taken him and cared for him and rejoiced in him; and in the same brief hour had lost him, perhaps forever. It was sweet, indeed, to have found him, but it was terrible, very terrible, so soon to have lost him. And yet Dannie felt, he knew, that his proper place was with the grandfather who had been so good to him, so kind, so tender, so absolutely true.

In all the journey from Mooreville to the door of the Pickett homestead, Abner Pickett had never once spoken of his son, of the scene in the jury room, or of his triumphant possession of his grandson; and Dannie knew that these things must remain forbidden subjects, as all things pertaining to Charlie Pickett had been from his earliest recollection. But when Aunt

Martha came in to bid him good night, the swelling tide of emotion that he had repressed for many hours, forced its way to his lips, and he put his arms around her neck and, amid many sobs, he told the story of the afternoon.

“I must have ’im, Aunt Martha,” he said at last; “I must have ’em both. Some way we must get Gran’pap to make up with ’im. I don’t know how it’s to be done; but some way we must do it. It’s terrible to let it go on like this; an’ Gran’pap’s so good to me—so good. Why won’t he forgive ’im, Aunt Martha? Why won’t he?”

“I don’t know, dearie. It’s his way. His father was so before him. It’s in the blood. All we can do, you and I, all we can do is to hope and to pray. Your grandfather will never yield to argument, nor to pleading. But I still have faith to believe that some time, in some way, the good God will bring about a reconciliation.”

“Thank you, Aunt Martha! I shall hope for it, and pray for it, and work for it, too, every day and all day until it comes.”

“And may it speedily come. There, now, you are very tired; go to sleep. Try to forget everything and go to sleep! You will feel better to-morrow. Good night!”

“Good night, Auntie!”

But when the morning came Dannie did not feel better. He slept late, yet he was not refreshed by his sleep. He was still tired, and his limbs dragged heavily as he went about the house. And, try as he might to forget it, that scene in the jury room the day before was ever present in his mind, a vivid picture of what he had found—and lost. Little by little the members of the household gathered from his lips the complete story of his journey through the storm. And while Abner Pickett smiled grimly at the boy’s pluck and will and mighty determination, since it proved him to be every inch a Pickett, Aunt Martha, moved by the lad’s tale of physical suffering, and touched by the moral energy that led him to endure it, turned her head away more than once to hide the tears that kept swelling to her eyes.

In the afternoon Gabriel came home. Of the equity trial he could give no news except that the evidence had been completed and a day fixed for the argument of counsel. But of Dannie’s journey through the storm, of his appearance in the court room, of his testimony on the witness stand, he

never ceased to talk. For days and weeks it formed the sole topic of his discourse.

“It was wuth a year’s wages,” he declared many a time; “it was wuth a year’s wages not to ’a’ missed it. Ez ol’ Isra’l Pidgin use to say: ‘Truth is jest ez mighty an’ pervailin’ w’en it comes f’om the lips uv a child, ez w’en it comes f’om the mouth uv an archangel.’”

That night, when Dannie went to bed, his pulse was beating rapidly, his face was flushed, his head was very hot and heavy, and he was troubled with a hacking cough. He did not complain of any pain, except the soreness and constant aching of all his joints and muscles; but that was due, he thought, to the violent effort necessary to force his way through the drifts the day before. Aunt Martha saw, however, that beyond the mere fact of physical fatigue, the boy was ill; and she insisted upon putting him to bed in the large guest-chamber adjoining her own sleeping room on the ground floor, where a fire could be kept burning on the hearth, and she could give him constant attention by night and day. He demurred to this arrangement at first, but soon, through sheer weariness, he yielded; and it was not long after his head touched the pillow, before he was fast asleep. Later in the night he appeared to be troubled and restless, and turned constantly in his bed, asking frequently for water. Aunt Martha tried to allay his fever with some simple remedies, but she found that her efforts were in vain. Early in the morning she awoke Abner Pickett and told him that Dannie was ill. He dressed himself, came in and looked at the boy, and saw, at the first glance, that the services of a physician were needed.

Before daylight Gabriel was on his way to Port Lenox to summon Dr. Chubbuck, and at nine o’clock the doctor came. He was short and stout, and red in the face, and carried with him always an air of joviality. But when he came out from the sick room he looked grave.

“What is it, Doctor?” inquired Abner Pickett, anxiously.

The doctor sat down by the table and unlocked his medicine chest before replying. He was always deliberate with his answers.

“I’m afraid it’s pneumonia,” he said finally. “One lung seems to be pretty badly involved. I guess we’ll pull him through, though.”

He weighed out the medicine and divided the powder into separate doses.

“Give him one every three hours.” Then he added, “Martha’s been telling me what he did Tuesday. What under the canopy possessed him to paddle through that storm to Mooreville, I can’t see. Why, he might have died of exhaustion. As it is he—well, we’ll do what we can for him.”

He turned his attention then to the compounding of a liquid prescription.

“Give him a teaspoonful every hour,” he directed, “till you get his pulse down to something reasonable—say a hundred and twenty. How’s the lawsuit going to come out, Abner?”

“I don’t know, an’ I don’t much care if you’ll only pull this boy through.”

“Just so. Do the best we can, of course. Nice boy; hate to lose him. I don’t think you’ll have any particular trouble to-night, though, and I’ll come up in the morning again and see how he is.”

When he came the next morning, he found Dannie no better. The fever was still high, and the congestion was still spreading in the affected lung. The next day both lungs were involved. Then Dr. Chubbuck realized that the case was getting critical. He gave to his task all the energy, all the skill, all the best thought and judgment, at his command. He was fond of the boy; he had been fond of the boy’s father before him. He had known Abner Pickett intimately from childhood, and, while he respected him for his many good and sterling qualities, he did not hesitate to condemn his faults to his face. And, strange as it may seem, Dr. Chubbuck was the only man in the world, under whose condemnation Abner Pickett would sit quietly with no show of resentment. The old man believed in him, trusted him, and relied on him in everything. There was only one topic that he would not permit him to mention, and that was the estrangement between him and his son.

Notwithstanding the doctor’s skilful treatment, and Aunt Martha’s tender nursing, Dannie grew steadily worse. He did not suffer great pain, but he was growing constantly weaker, and there was no abatement of the fever. He often wandered in his mind. He thought he was again battling with the storm. He would cry out that it was impossible for him to go farther through those dreadful drifts; that he was sinking to his death in the deep snow; and he would beg piteously for some one to come and rescue him.

“There are no drifts, Dannie,” Aunt Martha would say to him. “You are not out in the snow-storm now; you are at home in bed; and I am sitting

here beside you; and Gran'pap is standing there by the foot-board. You are dreaming, that is all."

But by the time Dannie would turn his glassy eyes toward the foot of the bed, Gran'pap would not be there. He would be in the next room wiping from his face the tears that Dannie must not see. Hour after hour he would pace up and down the carpeted floor, or sit silent by the fire, waiting, in an agony of dread, for what the next moment might bring forth. While Dannie's life was hanging in the balance he could neither work nor eat nor sleep. It distressed him greatly to hear the sick child's constant call for water to alleviate his thirst. They were obliged to give it to him in small quantities, inasmuch as his stomach, yielding to the general weakness, was participating actively in the disease.

"Can't he have somethin', Doc?" exclaimed the old man, impatiently, "somethin' that he can just drink down—somethin' that'll satisfy him if it ain't but for five minutes? I can't stan' it to hear him beggin' that way all the time for water!"

The doctor explained why liquids taken on the stomach in large quantities, in Dannie's case, might prove disastrous, and then mentioned a certain carbonated water, put up in siphon bottles, which he thought might be taken more freely and with good effect.

"I can't get it in Port Lenox," he added; "but Chamberlain at Mooreville has it. You might send up by the stage to-morrow morning and get some and try it."

"Write down the name of it, Doctor."

The doctor did so. Without another word Abner Pickett took the slip of paper and left the room. He hurried to the barn and summoned Gabriel.

"Here," he said, "help me to hitch up, quick! Take the team and the light cutter. You go to Mooreville to Chamberlain's, as fast as the two horses'll draw you, an' back again. Get three dozen bottles of the stuff that's written down on this paper, an don't waste a minute, as you hope for Heaven!"

Gabriel obeyed the order to the letter. He saved neither the horses nor himself. At dinner time he was back again with the effervescent water. Abner Pickett was so pleased with the haste made, that he asked it as a special favor that Gabriel might go in to see Dannie.

"It's Gabriel," said Aunt Martha. "He brought you something from Mooreville, something to drink. Here it is in the glass. See how it sparkles!"

"And may I drink it from the glass?"

"Certainly."

She raised his head gently from the pillow and held the tumbler to his lips. When he had swallowed the liquid he turned his grateful eyes on Gabriel.

"Thank you!" he said. "Thank you, very much. That—was so good—you were always—doing nice things for me—Gabriel."

And Gabriel, not daring to trust himself to reply, turned and left the room. When he was able to control his voice, he said to Abner Pickett:—

"They tell me he thinks he's in the drifts a-goin' from the poor-house to Mooreville, an' that the snow's a-smotherin' 'im. You tell 'im the road's all clear now. Tell 'im I went by there a-flyin'. Tell 'im a baby could walk through them drifts now without any help. Maybe it'll sort o' relieve 'is mind on that p'int."

The old man looked up at him grimly: "Gabriel, you're a—God bless you, Gabriel! Get to your dinner."

But Dannie's dreams were not all of his journey through the storm. He often thought he was with his father. And always some one came between them and forced them apart and compelled him to go away. It was pitiful at these times to look upon his distress. It required all of Aunt Martha's power of persuasion to induce him to believe that his imaginings were not realities. And if, at last, he was made to realize that his father was not with him, he would turn his head wearily on his pillow and sigh with disappointment. One morning Aunt Martha called the doctor aside and spoke to him very earnestly.

"Yes," he replied; "yes, certainly. He must do it."

He went out into the sitting room where Abner Pickett was pacing up and down the floor.

"Abner," he said, "I've been used to expressing my mind to you pretty freely, and I'm going to do it now. I don't know much about the quarrel

between you and Charlie, and I don't want to know. I don't know which of you is to blame, and I don't care. But, granted the fault is all Charlie's, he has, nevertheless, some rights as a father, which you, as a man, are bound to respect. And one of them is to know that his child is desperately ill, and to have the opportunity to come, if he wants to, and look on the boy's face while there's life in it. Now, that's all. If you don't know where to find him, Martha does."

Abner Pickett stopped in his monotonous walk and looked at the doctor for a full minute from out his haggard eyes. In that minute he went over the entire past, he considered the terrible present, he looked into the dark future. Then he said simply:—

"Tell Martha to send for him."

At midnight Charlie Pickett came home. He entered by the kitchen door, as in the old days, and passed on into the sitting room. His father was there, seated by the fire, gazing steadfastly on the burning coals.

"Father, I've come."

The old man did not answer him. He did not even lift his eyes from the blazing logs. But whether his silence was due to the old feud and stubbornness, or whether he dared not trust himself to reply, Charlie did not know.

"Father," he said again, "I've come—to see Dannie."

Still the old man did not answer, but he motioned with his head toward the inner room, and then turned again to the fire. So Charlie entered the room where his sick child lay. Aunt Martha met him at the threshold and kissed the cheek he bent down to her. Dannie was talking softly in his delirium, in the broken sentences that tell of rapid respiration. He thought he was walking up the gap in the moonlight, with his father, the engineer.

"It's most morning now," he murmured; "I—must hurry home. Gran'pap—don't know—I'm out. Yes, it is; it's a—beautiful curve, beautiful. That's my—mother's grave there—you know. Gran'pap wouldn't—have a stake there—for worlds—an' worlds. You're so good—to go—around it. That's because—you're my father. Are you—my father? I'm so glad. Don't hold me—quite so tight—father; it hurts me—here in my side—so. That's better. Who's that—pulling you away? Don't go, father,—don't go. Oh, don't go!"

“No, Dannie; I’ll not go. I’m here now to stay until you get well.”

Dannie opened his eyes wearily, and saw his father’s face bent over him. He did not seem surprised, only gratified. He reached out both his hot hands and grasped the strong cool hand of his father.

“I’m so glad—you’re going—to stay,” he said; “I want you—all the time. I lost you—last night—in the snow. I called—and called—but you didn’t—hear me. I’m so glad—you’re here again—so glad—so glad!”

With his father’s hand in his he fell asleep, and on his face, for the first time during his illness, there was an expression of supreme content.

When Dr. Chubbuck left the sick-room the next morning no one asked him how his patient was; the look on his face forestalled that question. He sent his team and driver back to Port Lenox. “I shall not leave here to-day,” he said; “the boy needs me.”

So he watched hour after hour at Dannie’s bedside, fighting, with every resource of skill and experience, against what seemed, to all, to be the inevitable end. At midnight the crisis came. They all knew it was on. No one in the house went to bed. Gabriel, in the kitchen hallway, stood ready for instant service, as he had stood for days—and nights. Even Max, lying by the sitting-room fire, never took his sleepless eyes from the door that led to Dannie’s room. The hush that tells of the near approach of man’s last enemy lay heavy on the house and all its inmates. There came a time when even those who were nearest and dearest to the sick boy could no longer bear the strain of watching at his bedside. The sudden fall of temperature, predicted by the doctor, had come, bringing its ghastly pallor, its relaxed muscles, its vivid signs of physical collapse; and Abner Pickett and his son, both unable to continue looking on the unequal struggle, had left the room.

Since Charlie’s arrival, the night before, no word had passed between them. The old man maintained a studied silence that said as plainly as words could have expressed it that he did not intend to permit Dannie’s desperate illness to be made the occasion for a reconciliation. And Charlie, looking now and again at the haggard and anxious, yet determined, face of his father, knew that even Dannie’s death would not suffice to bridge the awful gulf of estrangement. They sat there now, in the outer room, the old man, with his chin in his hands, staring into the fire, and Charlie resting his

head on the table and waiting for the end; and the unhappy, the unholy power of stubborn pride and self-will and resentment holding them aloof from each other, while, under their very eyes, death was grappling for a life that either would have given his own to save.

In the midst of their reverie they became suddenly aware that Dr. Chubbuck was standing in the doorway of the sick-room, ready to speak to them. Both men felt that the end was approaching, or had already come, and they rose reverently to their feet. The doctor advanced a few steps into the room, and spoke low, but distinctly:—

“Gentlemen, the crisis has passed. The temperature has risen to normal, and the patient has just fallen into a restful sleep. I believe he will live.”

Then he turned and went back into Dannie’s room. For a moment both men stood as if stunned. Instinctively they gazed into each other’s faces. Then Abner Pickett, with great strides, crossed the room to where Charlie stood. He put a trembling hand on each of his son’s stalwart shoulders, and looked straight into his clear blue eyes.

“My son,” he said, [“I have been to blame.”](#)

And Charlie, putting his arm caressingly about the old man’s neck, replied:—

“Father, for all that I have done against your wish and will, forgive me!”

That was all. No more words were necessary. The reconciliation was complete. That which even Dannie’s death could not have brought about was accomplished in one instant by the announcement that he would live. Joy will sometimes crush the heart that sorrow cannot touch.

A minute later, when Aunt Martha was about to cross the room hurriedly on some errand of mercy, she stopped suddenly, astounded at the sight that greeted her. But she grasped at once the beautiful meaning of it all, and raising her eyes devoutly toward heaven, she gently murmured:—

“Thanks be to God, who giveth us the victory!”

When Gabriel learned that Dannie would live, his joy knew no bounds; and when, in addition to that, he was told that Abner Pickett had become reconciled with his son, he could find but one mode of expressing his deep exultation. He plunged through the trackless fields and up the steep, snow-

covered side of the ridge till he reached the topmost peak above the glen; and there, where no sound that he could make would disturb the sufferer, facing alternately to the bright east and the clear west, he blew blast after blast on his faithful horn; blast after blast, with bulging cheeks and reddening face and pounding heart, till it seemed as though the echoes of the hill and glen would tire of answering.

But Dannie was not yet wholly out of danger. His convalescence was very slow. There were still days of disappointment and nights of anxiety. He never seemed to wonder at his father's presence, although it was plain that he rejoiced in it. It was thought best not to tell him at once of the reconciliation between Abner Pickett and his son. It was necessary to avoid every pretext for undue excitement; and the two men were never in his room together after that terrible night when the crisis was passed; never until they were sure he would be able to bear the news. It was one day when he was sitting propped up in bed, looking out over the snow-clad hills, that they came in quietly and stood together at his side before he was aware of their presence. He looked wonderingly from one to the other; but there was a smile on the face of each, and then Charlie laid his arm gently about the old man's shoulders.

"Is it true?" asked Dannie, flushing with joy and pride as he looked.

"It is true," said Abner Pickett.

"And, please God, it will stay true," added Charlie.

Swift tears sprang into Dannie's eyes, and he put a thin, weak arm around each of their necks, and drew their faces down to his and kissed them. In the doorway Gabriel stood with a newspaper in his hand endeavoring to attract attention. When at last the two men turned toward him, he exclaimed in a loud and exultant whisper:—

"We've won it."

"Won what?" asked Charlie.

"The lawsuit. It's all here in the paper."

He held up the page so that they could read the head-lines.

"Judge Moore Continues the Injunction against the D. V. & E. and Makes it Permanent. Holds that the Adoption of the Pickett's Gap Route by the

Board of Directors of the T. & W. was First in Point of Time. Declares that the Deed of Right of Way through Pickett's Graveyard is Invalid, having been Obtained through a Misunderstanding of Facts. Concludes that the D. V. & E. Company has no Right to Lay its Tracks in the Gap or the Graveyard."

"I'm so glad!" exclaimed Dannie.

"I knowed we'd knock 'em out in the fust round," said Gabriel. "Ez ol' Isra'l Pidgin use to say, 'It ain't ev'ry—'"

"Gabriel," interrupted the old man, with a smile on his face that told of the joy in his heart even though he gave voice to the old familiar words, "Gabriel, you're a fool."

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A Table of Contents has been provided for the convenience of the reader.

Punctuation and spelling inaccuracies were silently corrected.

Archaic and variable spelling has been preserved.

Variations in hyphenation and compound words have been preserved.

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